



STEEL AUTHORITY OF INDIA LTD.

{A Government of India Enterprises}

SAIL GROWTH WORKS, KULTI

P.O. KULTI, DIST: PASCHIM BARDHAMAN, WEST BENGAL - 713343
TEL. NO. +91 7605056879 / +91 9477702505, FAX NO: 0341-2516016
Email: upadhyay.amitosh@mjunction.in / mkbhangre.sgw@gmail.com

RFQ No: SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026

Request for Quotation (RFQ)

For supply of High Capacity Draft Gear with Follower

as per Drawing No. WD-71-BD-15 (Rev.01)

RFQ No. SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048

Dated: 28.02.2026

Due on: 14.03.2026 AT 04.00 PM

STEEL AUTHORITY OF INDIA LIMITED

Registered office: Ispat Bhavan,
Lodhi Road, P.O. Box 3049, New Delhi- 110003



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Steel Authority of India Ltd., SGW, intends to procure **"High Capacity Draft Gear with Follower as per Drawing No. WD-71-BD-15 (Rev.01)"** through the process of On-Line Reverse Auction from indigenous sources. Accordingly the Open Tender Enquiry as below with details Terms & Conditions enclosed herein, indicating the details of requirement along with the Methodology for participation in the Tender / Reverse Auction is issued. You are requested to read carefully the instructions contained in our enquiry and submit your Quotation in line with our requirement indicated. The quotation is required to be submitted as follows:

Supply/ Scope of Work	High Capacity Draft Gear with Follower as per Drawing No. WD-71-BD-15 (Rev.01) as per form 'B' Transportation & Delivery up to site at SGW, Kulti
Quantity	100
Unit	No.
Delivery	MATERIAL TO BE SUPPLIED AS PER DELIVERY SCHEDULE MENTIONED AS PER FORM B (delivery up to site at SGW, Kulti) i) The date of receipt of material at SAIL Growth Works, Kulti will be considered as the date of delivery. ii) Material will be despatched directly from manufacturer's works to consignee.
Price Firmness	Price to remain firm till completion of supply/execution of order.
Material Specifications	As per Form B
Payment	100% payment against GARN within 30 days. In case you are quoting for any other payment term, SAIL-Growth Works, Kulti reserves the right to reject quotation with unacceptable payment terms or to accept after loading on quoted price for differential payment term if considered acceptable by SGW. Following details shall be required for payment of bills : 1) Invoice / Bill in triplicate. 2) The supplier should quote the relevant GST No. in all the documents pertaining to the payment of GST (i.e. Invoice / Challan / Consignment Note / Lorry Receipt etc.). 3) The Purchase Order No. and Date should be quoted in all bills along with last amended purchase order number and date. 4) Bank details
Bidding Basis	Bidding will be done on overall L-1 basis
Tender to be submitted at	The Tender Box at SAIL Growth Works, Kulti, P.O. Kulti, Dist. Paschim Bardhaman Pin - 713343.
Tender sent by Post/ Courier to be addressed to	GM (CC, MM, S&F), SAIL Growth Works, Kulti, P.O. Kulti, Dist. Paschim Bardhaman, Pin - 713343.
Period of downloading of Tender document	28.02.2026 to 13.03.2026 , Tender document can be downloaded and submitted with EMD/Bid Securing Declaration in the office of GM (CC, MM, S&F), SAIL, Growth Works, Kulti, PO: Kulti, Dist. Paschim Bardhaman (WB), PIN: 713343. For details and downloading, please visit SAIL website https://www.sailtenders.co.in (under the link "search tenders", Plant/Unit as "SAIL Growth Works (SGW)"). Tender document to be submitted with EMD (to be submitted as mentioned at clause no. 19). No additional cost is required to be deposited towards the cost of tender document. However, tenderers may opt to collect the complete document from SAIL without any charge if they are unable to download it from the website.
Due date of submission of Quotation	On or before at 14.03.2026 at 03.30 PM.
Due date for opening of Quotation (Techno Commercial bid)	On 14.03.2026 at 04.00 PM.
Cost of Tender Document	NIL
Bid Securing Declaration	Bid Securing Declaration shall be enclosed in a separate sealed cover
Validity of the Offer (Price)	Techno-commercial bids shall remain valid up to 90 days. Price bid for Reverse Auction to remain valid at least for 45 days from the date of RA.
Price Bid (Special Term)	On Line Price Bid is to be submitted on MJ's Byjunction portal at Link https://buyjunction.in and get an acknowledgement slip of on line submission and attach this acknowledgement slip along with the techno commercial offer. Refer "Submission of Offer" For normal adequate number of offers received, price will be obtained

(Signature of the Supplier)



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through On - Line Reverse Auction on the platform of mjunction services limited.

NOTE:

1. Submission of physical sealed Price Bid along with the tender document or in any other form/format quoted will be rejected.
2. IMPORTANT NOTE: PLEASE NOTE THAT THE TENDERER MUST PROVIDE ONE VALID EMAIL ADDRESS AND MOBILE NO IN THEIR OFFER.

The Tender consists of the following two Parts:

Part - I : Tender Document (Techno commercial offer) along with **Acknowledgement Slip ***

Part – II : Price Bid to be submitted on MJUNCTION's platform at <https://buyjunction.in> Please see the methodology for submission of Online Price Bid in the RFQ at **Page No. 4**

(Please note that after Techno-Commercial scrutiny, the Reverse Auction will conduct amongst the Techno-Commercially accepted tenderers)

The entire Tender document, except the Price-Bid containing the "Schedule of Rates", constitutes Part-I of the Tender. All Documents/Information, required as per the tender, are to be submitted along with Part-I of the Tender only.

- The Tenderer should detach the page containing the acknowledgement Slip of MJ Portal where Price Bid was submit in MJ's Platform at <https://buyjunction.in> Portal and obtain an acknowledgement Slip the same required to be submitted along with Techno-Commercial offer.
- **Note: Submission of physical sealed Price Bid along with the tender document or in any other form/format quoted will be rejected.**

Apart from the above, the Earnest Money Deposit (EMD)/Bid Securing shall be enclosed in a separate sealed cover.

There shall therefore be following separately sealed envelopes initially;

- i) Envelope containing Techno-Commercial Offer (Part-I) of the Tender containing the:
 - Entire Tender document as well as all Documents/Information required as per the Tender. The envelope should be marked as **"Techno-Commercial Offer"**.
 - Acknowledgement Slip of Online Price bid submitted in MJ's Platform at <https://buyjunction.in> Portal.
- ii) Envelope containing the Earnest Money Deposit. The envelope should be marked as **EMD- Earnest Money Deposit/ Bid-Securing Declaration.**



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RFQ No: **SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026**

Submission of Offer: Part II

- Techno Commercial Bid: Bidders may submit their Techno-Commercial Bid by Post/Courier at the following address:
TO: The GM (CC, MM, S&F), SGW, Kulti. P.O. Kulti – 713343. Dist. Paschim Bardhaman (W.B.)
- OR may also submit through Email (Email ID : upadhyay.amitosh@mjunction.in / mkbhangre.sgw@gmail.com)
- Price bids to be submitted on MJUNCTION's Platform at <https://buyjunction.in>
- Methodology for submission of Online Price bid :-
Step 1: Login to <https://buyjunction.in>
Step 2: Click on [Login Tab](#)
Step 3: Go to Important link and click on "[View Live Auctions & Tenders](#)"
Step 4: Click on Tender document.
Step 5: Existing users can login with their user id and password. New users would have to register for a user id & password on the site.
Step 6: Read through the "[Bidding Procedure](#)" to proceed further for bidding and place your online sealed price bid.
Step 7: Take a printout of the receipt confirming that the online sealed price bid has been submitted (Acknowledgement)

System generated acknowledgement-slip for online submission of price bid to be submitted along with the techno commercial bid.

MJUNCTION Contact person for assistance:

Priyanka Majumdar @ 9051186491 (Primary contact of Kolkata)

Deblina Maity @ 8336991451 (Primary contact of Kolkata)

Anamika Datta @ 9163348075 (Primary contact of Kolkata)

Sumit Kr. Das @ 8336913919 (Burnpur Branch)

P. Sagar @ 6289909466 (Burnpur Branch)

- The timeline for submission of offer is as under :-

Techno-Commercial Bid	14.03.2026 by 03.30 PM
Price Bid - To be submitted at M/s Mjunction's Portal at https://buyjunction.in	14.03.2026 by 03.30 PM
Due date of opening of Techno-commercial bid	14.03.2026 by 04.00 PM



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Contents

- 1.0 Tender processing for On-line Reverse Auction.
- 2.0 Service Providers and the Issuance of RFQ
- 3.0 Submission of techno-commercial bids
- 4.0 Opening of Techno Commercial Bids
- 5.0 Participation in On-line Reverse Auction for price bidding
- 6.0 Emergence of L1 vendors
- 7.0 Ground Rules for Participation/ Information to Tenderers.
- 8.0 General Terms and Conditions

Annexure

- FORM - A Format for Acceptance of Commercial Terms, General Terms and Conditions and all other Terms of the RFQ.
FORM - B Format for Technical Specifications.
FORM - C Format for Taxes and Duties.
FORM - D Format for Basic Information of the Vendor.
Annexure-I Description of item / specification.
Annexure-II General terms and conditions governing conduct of On-line Reverse Auctions on Mjunction Platform & Definition of Key Terms – Reverse Auction.
Annexure -III Format for Submitting price Break-up.

EVALUATION CRITERIA:

1. The quotations received after due date & time will be rejected.
2. The price basis for bidding will be as mentioned below: - (on LCNG Basis)
LCNG rate to include Base Price (Ex Works + packing) + GST (CGST+SGST or IGST as applicable, against documentary evidence) + forwarding charges, if any + freight + insurance as applicable
The evaluation will be done on overall L-1 basis considering unit rate of all items together.

Notes.

1. Shall be quoted on free delivery at Receiving Stores of SAIL Growth Works, Kulti, (Landed Cost).
2. In case of any failure in timely supply by supplier, SAIL Growth Works, Kulti reserves the right to take any course of action as per contract to ensure availability of material.
3. *The contract shall be guided by general terms and conditions of supply under SAIL P1 (copy is enclosed)*

For any clarifications connected with this tender, you may contact the following Key Contact Person:

(M.K. BHANGRE)
GM (CC, MM, S&F)
SAIL Growth Works, Kulti,
P.O. Kulti, Dist. Paschim Bardhaman,
Pin -713343.

Email: mkbhangre.sgw@gmail.com
sgwkultimm@gmail.com
+ 91 9477702505
Phone No: 0341-2515481

You may also contact our service provider M/s. Mjunction Services Ltd., at the address / telephone numbers mentioned in the enquiry for any clarification.

Thanking you,
Yours faithfully,

(M.K. BHANGRE)
GM (CC, MM, S&F)
SAIL Growth Works, Kulti,
P.O. Kulti, Dist. Paschim Bardhaman, Pin -713343.

Encl: Detailed Terms & Conditions and procedure for Reverse Auction. Tenderers are requested to submit the RFQ with techno-commercial offer after putting their signature and seal in all pages of RFQ, complete in all respect as a confirmation accepting all terms and conditions.

Ensure that all documents are forwarded as required and all clarifications are done prior to sending the RFQ.



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In case, if all THE pages of RFQ are not submitted duly signed along with the offer, your offer may be rejected.
Purchase Department

1.0 Brief description of the tender processing for On-line Reverse Auction is given below:

Tenderers to submit their techno commercial offer (In a separate envelope) along with all the required documents as per the terms of RFQ, which shall be opened on the due date of opening of quotation. Price Offer (In a separate envelope) to be submitted alongwith techno-commercial bid. Both Techno-commercial offer and Price offer envelopes should be put in a single envelope. Price offers will only be opened in case of inadequate techno-commercially acceptable offers received with due intimation to techno-commercially approved Tenderers only.

- 1. Part-1 – EMD / Bid Securing Declaration in a separate Envelope (marked envelope-1)**
- 2. Part-2- Eligibility Documents, Techno Commercial Part & Commercial Part and Unpriced Price Schedule (To be submitted 1 original + 1 Copies) along with acknowledgement-slip for online submission of price bid in a separate Envelope (marked envelope-2)**

All the envelopes to be put in a bigger envelop and properly sealed which should be marked as Part 1, Part 2, and part-3 superscribing Enq. Ref & Date, due date of opening and this subject of procurement. The same shall be dropped in the tender box kept in the office of GM (CC, MM, S&F) SAIL GROWTH WORKS, KULTI. P.O. KULTI – 713343, Dist. PASCHIM BARDHAMAN (WB)

The part-2 of the tender of only those tenderers, whose Earnest Money Deposit (EMD)/Bid Securing Declaration will be found in order and submitted as prescribed above, shall be opened immediately thereafter, otherwise the offer will be considered as invalid and techno-commercial bid (part -2 of the tender) of the same will not be opened.

For normal adequate number of offers received price will be obtained through On – Line Reverse Auction. In case of unsuccessful RA, SGW Kulti reserves the right to reject RA result.

2.0 Service Provider (SP) and the Issuance of RFQ

- 2.1** Steel Authority of India Limited has engaged the services of its Joint Venture Company M/s Mjunction Services Limited (MJ) for conducting the Reverse Auctions. MJ is fully authorized to give clarifications / coordinate with the suppliers on behalf of Steel Authority of India Limited with respect to the conduct of Reverse Auction for the items/services mentioned in this Enquiry. The contact details of the Service Provider are as follows:

Corporate Office	Branch Office
Mjunction Services Limited 11 th Floor, TataCenter 43, Jawaharlal Nehru Road Kolkata – 700071 Ph: 033 – 2288 3149 (Direct) 033- 22882606 (ext 124) Fax: 033 – 66133222 / 22820702	Mr. P. Sagar M- No. 6289909466 CRM -Mjunction services Ltd SAIL-ISP Ground Floor, Materials Building Burnpur – 713305

- 2.2** Suppliers who are acceptable to SAIL Growth Works, Kulti and who accept all the Terms and Conditions shall be intimated by M/s Mjunction to participate in the Reverse Auction.
- 2.3** The SP will explain the Reverse Auction process to all the prospective bidders and clarify issues, if any. It will be the responsibility of the tenderers to get themselves acquainted to their satisfaction with the On-line bidding process by thoroughly interacting with the SP. Only SAIL Growth Works, Kulti will be empowered to approve any deviations from the RFQ document asked for by the Supplier.
- 2.4** Vendor Enablement - The Service Provider shall have the responsibility of familiarising the bidders with the Reverse Auction Process. (Including training to the vendors).

3.0 Procedure for filling up and submission of techno-commercial bids.

Tenderers will have to submit Techno-commercial bid as a first step. The techno-commercial bid comprises of Technical & Commercial terms and conditions. It is to be submitted in a sealed envelope. The envelope should be clearly superscribed with Enquiry reference, due date of submission, due date of opening and clearly indicating "This envelope contains Techno-commercial bid against **RFQ No: SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026** for procurement of "High Capacity Draft Gear with Follower as per Drawing No. WD-71-BD-15 (Rev.01)" through On-line Reverse Auction.



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The Techno-commercial bid should include the following.

- 3.1.1 A letter from the bidder accepting all Commercial Terms & Conditions, General Terms & Conditions, and all other terms and instructions contained in this RFQ in Form 'A' attached to this enquiry (RFQ).
- 3.1.2 An undertaking from the bidder in Form 'A' that they have understood the Reverse Auction process and are willing to participate in RA process and shall abide by all the rules and regulations of the RA. The undertaking should be accompanied by duly filled and signed forms as per annexure B, C, D.
- 3.1.3 Form B, C, D duly filled in and signed by tenderer contain the following: -
- 3.1.4 Confirmation of acceptance of Technical specification, inspection procedure & criteria for acceptance, vide Form B.
- 3.1.5 Details of Taxes and duties, vide Form C.
- 3.1.6 Basic information regarding the supplier, vide Form D.
- 3.1.7 Certified / Attested copies of all documents asked for in the enquiry **along with all pages of RFQ with your signature accepting terms and conditions.**
- 3.1.8 Name of the person who is authorized to bid in Reverse Auction on behalf of the firm/supplier. The user ID and password would be given to this person only.
- 3.1.9 The E.C.C. registration and GSTN Number.
- 3.2 Please note that –
 - 3.2.1 Techno-commercial bid should not contain price or any indication of prices; **else the offer will be rejected.**
 - 3.2.2 Offers received after due date & time will be rejected.
 - 3.2.3 Offers received by Fax / Telex / Cables/ E mail may be accepted if received before due date /time of tender opening indicating item wise specification and delivery schedule. The same however should be subsequently confirmed by an authenticated quotation, prior to the tender opening.

4.0 Opening of Techno Commercial Bids:

- 4.1 Techno commercial bids will be opened at SAIL Growth Works, Kulti, P.O. Kulti, Dist. Paschim Bardhaman at 4.00 p.m. on due date by officers of SAIL Growth Works, Kulti, in the presence of authorized representatives of tenderers, who might choose to be present.
- 4.2 Evaluation of Techno Commercial bids -
 - 4.2.1 The Techno Commercial Evaluation process will comprise of two steps carried out simultaneously viz. Technical Evaluation and Commercial Evaluation by designated agency of SGW, Kulti.
 - 4.2.2 In case of deviation / non-agreement to the technical specifications / conditions, clarification may be sought from tenderers and in case of non-confirmation within the specified date; the bid is to be rejected, being technically not suitable.
 - 4.2.3 Based on the above, the tenderers will be classified as technically acceptable / not acceptable.
 - 4.2.4 The same process will be repeated for the Commercial terms. On non-agreement, clarification(s) may be sought from tenderers and in case of non-confirmation within the specified date; the bid will be rejected being commercially not acceptable.
 - 4.2.5 Based on the above, the tenderers will be classified as commercially acceptable / not acceptable.
 - 4.2.6 Based on the reports of Technical & Commercial Evaluation, the bids will be classified as techno-commercially acceptable / non acceptable.

In case any specific adverse report is received against any tenderer as an information or upon enquiry made by SAILGrowth Works, Kulti in respect of performance of tenderers after receipt of tender but before participating in the R.A., the offer of the firm / vendor shall be rejected on the basis of recorded reasons. If such a report is received after RA, then also the quotation / bid of that tenderer shall be rejected after recording the reasons.

5.0 Participation in On-line Reverse Auction for price bidding:

- 5.1 Tenderer will be required to participate in On-line Reverse Auction over Internet for bidding.
- 5.2 Definition of Key Terms of Reverse Auctions is given in Annexure – 1 and General Terms and Conditions are given in Annexure - 2.
- 5.3 The key features for participation in a Reverse Auction are given below:
 - 5.3.1 The Reverse Auction will be conducted on Service Provider's platform the rules for which are given in annexure – 1.
 - 5.3.2 Date and duration of the reverse auction shall be intimated by the service provider to all the techno-commercially acceptable tenderers.
 - 5.3.3 There would be an auto extension of bid time in case bids are placed during last seven minutes of the indicated bid closure time. The auto extension rule will extend the bid time by a period of seven minutes till bids continue to get placed or the buyer decides to terminate the Reverse Auction.
 - 5.3.4 All bidders should nominate a person who would be the authorised 'BIDDER' (i.e, the person who is authorized to bid in Reverse Auction on the firm's behalf). The "USER-ID" and "PASSWORD" will be given to this person only. The Service Provider will intimate a secure and confidential Login ID and Password specific to each tenderer, for participating in the Reverse Auction.
 - 5.3.5 The Start Bid Price, for the Item, is the estimated value for the items. The Start Bid Price is per MT as indicated at Page 1 including the unit specified.
 - 5.3.6 The bidding will take place in Indian Rupees.



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- 5.3.7 During the Reverse Auction, bidders have to quote for **100% of the tendered quantity**; else their bid will not be accepted.
- 5.3.8 Bids are to be quoted for per unit of material as specified in enquiry on **F.O.R. SAIL Growth Works, Kulti** basis. (Landed cost net off GST). During the Reverse Auction, suppliers shall be allowed to revise their price and bring it downward only. **Bidders are not allowed to quote above the Start Bid Price under any circumstances.**
- 5.4 All Bidders have to confirm through a letter/ fax (0341-2516016), their last quoted prices within four hours of concluding the Reverse Auction also the bidders would have to submit price break-up of the item within 1 working day from the date of reverse auction.
- 5.5 All Bidders are advised to quote from a reliable Internet facility, as neither SAIL Growth Works, Kulti nor MJ would be responsible for any failure in the Internet connectivity during the bidding.
- 5.6 It is categorically to state on behalf of M/s SAIL Growth Works, Kulti and M/s Mjunction that the Bidders need not pay any fee towards training, for actual bidding etc., in the Reverse Auction and the Bidders need not subscribe to any of the services in lieu of participation in the Reverse Auction.
- 5.7 Written Acceptance in-toto to all the Terms & Conditions mentioned in this document is a pre-requisite for securing participation in the On-line Reverse Auction conducted by Mjunction on behalf of Steel Authority of India Limited for the products / services required as per this RFQ. **Hence, the bidder is requested to sign on all pages of this RFQ and submit along with the techno-Commercial bid.**
- 6.0** The price bid evaluation process shall comprise of key element– L1 definition. The emergence of L1 vendor in the Reverse Auction:
- 6.1 L1 will be computed as follows on overall L-1 basis of comprising of all items together:
- Landed Cost Net off GST
- 6.2 The price basis for bidding will be as mentioned below: -
LC rate to include Base Price (Ex Works + packing) + GST (as applicable, against documentary evidence + forwarding charges, if any + freight + insurance as applicable. The evaluation will be done on overall L-1 basis
- 6.3 The bidders shall submit their detailed price break-up for all taxes and duties, within four days of the closure of the auction, to Mjunction (033 – 66133222) with a copy to Mr. M.K. Bhangre. Phone no. 0341-2515481, and Fax no. 0341-2516016, GM (CC, MM, S&F) SAIL Growth Works, Kulti, P.O. Kulti, Dist. Paschim Bardhaman - 713343
- 7.0** Ground Rules for Participation / Information to tenderer:
- 7.1 Conditional offers will not be acceptable. SGW reserve the right to accept or reject any offer without assigning any reason whatsoever.
- 7.2** The **total tendered quantity as per form B will be ordered on SINGLE PARTY.**
- 7.3 Tenderer should provide complete, clear and thorough responses to all information requested in the Enquiry document. If any one of the forms attached is not submitted or is incomplete in any respect, the bid will be rejected.
- 7.4 Tenderers shall keep their offer firm and valid for acceptance by SAIL Growth Works, Kulti for a period of 45 days from the date of conducting the Reverse Auction, if not otherwise mentioned in Tender Enquiry.
- 7.5 **Consignee:** Material should be consigned to GM (CC, MM, S&F) SAIL Growth Works, Kulti -713343.
- 7.6 **Price:** The prices shall remain firm during the period of the contract.
- 7.7 Tender Submission and Tender opening information:**
- 7.7.1 The Tender shall be addressed **to GM (CC, MM, S&F), SAIL Growth Works, Kulti, P.O. Kulti, Dist. Paschim Bardhaman – 713343 and submitted in the office of GM (CC, MM, S&F), SAIL Growth Works, Kulti, P.O. Kulti, Dist. Paschim Bardhaman - 713343**
- 7.7.2 In case you are unable to submit offer at this instant, please send REGRET LETTER to reach before tender opening date, otherwise SAIL Growth Works, Kulti reserves the right to delist you from mailing list.
- 7.7.3 SAIL Growth Works, Kulti reserves the right to accept or reject any tender in part or in full thereof without assigning any reason.
- 8.0 GST:**
- 8.1 GST shall be payable extra as applicable on the date of dispatch within the contractual delivery period.
- 8.2 The supplier has to provide the "Duplicate for transporter copy" (DFT) of Invoice along with the material.
- 8.3 All necessary formalities and rules of GST must be followed to avoid any discrepancy at the time of receipt of material.
- 8.4 In case the bills are not supported by GST Paid documents, the claim for GST credit shall be withheld. The same shall be released only after the supplier submits the requisite documents in time.
- 9.0 : Rescinding of Contract:** SAIL Growth Works, Kulti reserves the right to reschedule delivery period and suspend/ cancel / short close the order, if the suppliers performance is found unsatisfactory. The supplier will not be entitled to and claim any loss and damage because of and owing to such suspension/ cancellation / short closure and SAIL Growth Works will not be liable for the same.
- 10.0 Transit Damage:** Supplier has the full responsibility of delivering the complete quantity with intact packing to the SAIL Growth Works, Kulti stores or at place as specified.



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Email: upadhyay.amitosh@mjunction.in / mkbhangre.sgw@gmail.com

RFQ No: SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026

11.0 Liquidated Damages: In the event of supply not being effected within the contractual delivery schedule liquidated damages @ 1%, not by way of penalty, of the value of the materials without taxes, duties & freight, per month of delay or part thereof, subject to maximum of 5%, is recoverable from the supplier without prejudice to the rights of purchasers to procure the balance material at the risk and cost of the supplier. The payment or deduction of such damages shall not relieve the supplier from the contractual obligations to complete the supply or balance portion thereof in time as stipulated in the contract.

12.0 Risk Purchase: If the supplier fails to deliver the stores either in full or in part, within the prescribed delivery period, the purchaser shall be entitled at his option to take alternate procurement action, at the risk and cost of the supplier for the unsupplied portion of the goods/items for which delivery has expired without cancelling the contract in respect of the stores not yet due for delivery, or to cancel the contract based on progress on work, including stores not due for delivery, and, if thought fit/necessary, to purchase the stores at the risk and cost of the supplier. The price differential in case of higher cost to SAIL, if any, shall have to be borne by the defaulting supplier. Moreover the defaulting supplier shall have no claim over the quantity, which they failed to supply.

13.0 The supplier shall lift the rejected material within 30 days of intimation, failing which SAIL-Growth Works, Kulti, may dispose off the rejected material at its discretion and will stand absolved of all responsibilities towards the supplier for rejected material.

14.0 Force Majeure Clause : If at any time during the currency of the contract, the performance in whole or in part by either party of any obligation under this Contract shall be prevented or delayed by reasons of war, Hostility, Acts of public Enemy, Civil commotion(s), Sabotage, Fire(s), Flood(s), Explosion(s), epidemic, Quarantine Restrictions, Acts of State or Acts of God, hereinafter referred to as eventualities, then the Contract period will get extended for the period of force Majeure, provided notice of the happenings of any such eventualities is given, supported by a certificate of appropriate authority or Chamber of Commerce by either party to the other within 15 days from the date of occurrence thereof. Neither party shall by reason of such eventualities be entitled to terminate this contract nor shall either party have any claim for damages against the other in respect of such non performance or delay in performance. Work under this contract shall resume as soon as practicable after such eventualities have come to an end or ceased to exist and the decision of the Company as to whether the work has to be resumed shall be final and conclusive. Should one or both parties be prevented from fulfilling their contractual obligations by state of Force Majeure lasting continuously for a period of at least three months, the parties shall consult each other regarding further continuation of the Contract.

15.0 Arbitration : All disputes or differences whatsoever arising between the parties and / or relating to the construction, interpretation, application, meaning, scope, operation or effect of this contract or the validity or the breach thereof, shall be settled by arbitration in accordance with the Rules of Conciliation & Arbitration 2003 of SCOPE Forum of Conciliation & Arbitration (available at www.Scopeonline.in/Farb.htm) and the award made in pursuance thereof shall be final and binding on the parties. The venue shall be the Purchaser's premises or as decided by the arbitrator.

Useable, intimation in this regard shall be given to supplier within 90 days or receipt of such material. Supplier shall depute his representative within 30 days of receipt of such intimation for inspection/ assessment if so desired. Purchaser shall decide the amount to be recovered from the supplier and supplier shall remit the same to the purchaser on receipt of such intimation. All costs associated with above shall be borne by supplier.

16.0 For PSU Suppliers the Arbitration shall be in accordance with the provisions of the memorandum issued by BPE.

17.0 General Terms and Conditions:

In addition to General Terms and conditions mentioned herein, the contract shall be governed as per SAIL P-1 which can be downloaded from SAIL Website www.sail.co.in

- 17.1 If any trend of cartel formation is observed in the tendering process, bids of all tenderers involved in cartel formation are liable to be rejected.
- 17.2 The tenderer must declare whether the proprietor or any partner of the firm, or director of their company, has any relation with any employee working in SAIL, if so give the name of the employee and the relationship and also whether any of them has a relationship within the meaning of section 6 of Companies Act, 1956 with any directors of SAIL and if so give details.
- 17.3 SAIL – SGW, Kulti, in its sole discretion, unconditionally and without having to assign any reason, reserves to itself the right:
 - a. To accept or reject the lowest offer or any other tender or all the tenders.
 - b. To accept any tender in full or in part.
 - c. To allow purchase preference to the PSUs and Joint venture with PSUs as per the relevant prevailing guidelines of the Govt. of India.
 - d. To accept or reject the RA result. The tenderers would have no claim for issuance of POs in such cases.
 - e. To cancel or reschedule Reverse Auction when confirmed bidders are insufficient to conduct Reverse Auction.



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18. Eligibility Criteria:

Tenderers should fulfill the following Eligibility Criteria and submit documentary proof to this effect.

1. The bidder should be a RDSO approved Vendor for the category Draft Gear.
2. The tenderer must have supplied/supplying Draft Gears to Govt. Organization/PSU/Corporate sector (Public Ltd./Pvt Ltd.)/ Autonomous Bodies/Joint Venture Company where at least one partner is Govt. Organization/ PSU in last 7 (seven) complete financial year or the current financial year ending last day of the month previous to the one in which tenders are invited, should be of value, either of the following:

Single Annual order value of minimum **Rs. 30, 13, 400.00**

OR

Two Annual order value each of minimum **Rs. 20, 08, 907.00**

OR

Three Annual order value each of minimum **Rs. 15, 06, 720.00**

3. The average annual financial turnover should be **Rs. 25, 11, 200.00** in last three financial years.

Note:

- i. In support of the eligibility and experience, the tenderer has to submit Self-attested copies of Purchase Order and Statement of Delivery Completion Certificate from buyer or Buyer's payment advice or Paid RA Bill certified by Buyer to be submitted.
- ii. Performance Certificate from the purchaser/Self-Attested Declaration that the items supplied against the purchase orders has no adverse report from the purchaser.
- iii. In support of turnover, audited accounts along with all related schedules should be submitted. All financial documents such as Annual Turnover, Balance Sheet, Profit & Loss statement etc. certified by Chartered Accountant (CA) submitted by the tenderer/parties must contain Unique Document Identification Number (UDIN).



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19.0 Bid-Securing Declaration

(In lieu of EMD)

Date:

Bid No.:

Alternative No.:

To,

SAIL GROWTH Works, Kulti.

I/We-----, the undersigned, declare that:

I/We* understand that, according to your conditions, bids must be supported by a Bid-Securing Declaration in lieu of Earnest Money Deposit.

I/We understand that if I/We withdraw or modify our Bids during the period of validity, or if

I/We are awarded the contract and I/We fail to sign the contract, or to submit a performance Security before the deadline defined in the request for bids document, I/We will be suspended for the period of one year from being eligible to submit Bids for all future contracts.

I/We* understand this Bid Securing Declaration shall cease to be valid if I am/we are* not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our* Bid.

Yours faithfully

[insert signature of person whose name and capacity are shown] In the capacity of

[insert legal capacity of person signing the Bid Securing Declaration]

Name: *[insert complete name of person signing the Bid Securing Declaration]*

Duly authorized to sign the bid for and on behalf of: *[insert complete name of Bidder]*

Dated on _____ day of _____, _____ *[insert date of signing]*

Corporate Seal (where appropriate)

[Note: In case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the bid.]



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20.0 PROFESSION TAX PAYMENT CERTIFICATE: Profession tax payment certificate is to be submitted by the bidders who are covered under West Bengal State Tax on Professions, Trades, Callings and Employments Act, 1979. Entities who are not covered are to provide declaration giving reasons thereof. The bidders are to submit the same along with their techno-commercial bid / offer.

21.0 MSME/Udyog Aadhar Certificate is to be submitted by the bidders who are registered under MSME along with following information on the category of MSE to which they belong enclosing related documents and self-declaration with the Offer:

- a. MSE (General category)
- b. MSE owned by SC/ST
- c. MSE owned by Woman Entrepreneur.

22.0 Bidder should accept the General Terms & Conditions of Contract for Purchase (SAIL – P1). Copy enclosed.

Anti-Bribery Undertaking:

By participating in this tender, the Suppliers/Vendors/Contractors are deemed to have undertaken that they shall not give or take any financial or non-financial bribe, to or from anyone during the tender or during the execution of the contract thereafter and if they notice any such Incident happening, they shall report it to SAIL Vigilance.

Note: Disclaimer :-

It shall be the responsibility of the persons submitting the tender to ensure that the tenders have been submitted in the formats and as per the terms and conditions prescribed in the SAIL Website and no change is made therein before submission of their tender. In the event of any doubt regarding the terms and conditions/ formats, the person concerned may seek clarifications from the authorized officer of SAIL. In case any tempering / unauthorized alteration is noticed in the tender submitted, from the Tender Document available on the SAIL Website, the said tender shall be summarily rejected and the company shall have no liability whatsoever on the matter. However, deviation if any proposed by the tenderer may be separately indicated for acceptance or otherwise of SAIL. Such proposed deviation will not be treated as tempering for the purpose of application of this clause.

If any clarification/confirmation/documents regarding the bid is not submitted within 10 days of intimation, SGW, Kulti will evaluate the bid as per last document submitted

Legal Jurisdiction: All suits and legal proceedings by or against SGW in any matter arising out of the tender shall be triable only by the appropriate civil court at Asansol.



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FORM - A

(To be submitted on Supplier's Letter Head)

Format for Acceptance of Commercial Terms, General Terms and Conditions and all other Terms of the RFQ

We _____

(Supplier Name)

having registered office at _____

(Address)

agree to all the Commercial, General & other Terms & Conditions listed in the

Enquiry No. **SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026** for **High Capacity Draft Gear with Follower as per Drawing No. WD-71-BD-15 (Rev.01)** through Reverse Auction.

We confirm that we are in a position to supply material as per the specification given in Enquiry. We have also understood the Reverse Auction Process and the Reverse Auction rules and special instructions given in the Enquiry. We agree to participate in the Reverse Auction and abide by the rules. We nominate an executive, whose details are given below, to put the bids on our behalf.

The details of the bidder authorised to bid on our behalf is as follows.

Name & Designation:

Contact phone nos. :

Address :

E-mail ID:

(Signature of authorized executive & Seal)

Place:

Date:



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RFQ No: **SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026**

FORM – B

Technical Specification

Sl. No.	Description of the Item	Quantity	Unit	Delivery Schedule
01	High Capacity Draft Gear with Follower as per Drawing No. WD-71-BD-15 (Rev.01)	100	No.	Strictly within 06 (six) weeks from the date of Purchase Order

Important Points:

- I. Non conformity to the specification shall render the material liable for rejection and same should be replaced immediately at no extra cost.
- II. Dispatch Documents: Guarantee Certificate & Material Test Certificate before dispatch.
- III. Inspection: At SGW, Kulti by GM (CC, MM, S&F), SGW, Kulti or representative of SGW, Kulti.
- IV. The quotation and prices in Reverse Auction should be strictly according to the description.
 - a. Price bidding in online Reverse Auction will be done on overall L-1 basis. The bidders have to submit price break up of the above item within 1 working day from the date of Reverse Auction.
 - b. Bidders to quote for 100% of the RFQ quantity.
 - c. Bidder must ensure proper availability of quality.
- VII. Guarantee clause: 1 (one) year from the date of supply.
- VIII. Order will be placed on single party on overall L-1 basis.



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FORMAT FOR TAXES AND DUTIES

FORM – C (Please use this sheet to specify the GST & other duties).

1.	GST Applicable : IGST or SGST / CGST	
2.	Present GST rate,	
3.	HSN Code	
4.	GST Registration Number	
5.	Other taxes & duties applicable (If any)	
6.	Freight	
7.	Transit insurance	
8.	Bank Account number, Name & Branch	

(Signature & Seal)

Name & Designation:

Date:



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RFQ No: SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026

FORM - D (Format for Basic Information of the Vendor)

Enquiry Number: _____

Date: _____

Instructions to fill up the Basic Information:

- (i) Please use this worksheet to specify basic financial/ IR/ Contact information; an authorized person should sign the document at relevant section.
- (ii) Past Industrial Relations track record, please mention if there was closure/ cessation of work at any of your plant(s) in the last 5 years.
- (iii) Use this form as Proforma/ Format. Use additional sheets to provide relevant information.
- (iv) Provide all the certified relevant documents w.r.t claims made in this Form.

1	Company's Name						
2	Ownership Details						
3	Manufacturer/ Distributor/ Dealer						
4	Mention, if PSU/ Joint venture with PSU/ SSI Unit						
5	Incase of PSU - Central PSU or state Govt. PSU						
6	Incase of a Joint Venture, details of % wise equity holding						
7	SSI Unit details, if applicable						
8	ISO Status						
9	Whether product is ISI Marked or as per ISI						
10	Contact Person & Designation						
11	Phone No.						
12	Fax No.						
13	E-mail						
14	Financial details of Turnover & profit for the last 3 years						
15	Major Manufacturing Capabilities						
	Sr. No.	Name & Address	Installed Capacities	Capacity Utilized	Present level Order booking		
					FY 1	FY 2	FY 3
16	The year of inception of the company/ business						
17	Bank Account detail : Name & Branch Account Number						
18	PAN No						
19	Profession tax payment certificate (to be submitted by the bidder who is covered under West Bengal State Tax on Professions, Trades, Callings and Employments Act, 1979). Entities who are not covered are to provide declaration giving reasons thereof.						

I hereby certify that all information provided above is correct to the best of my knowledge



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REVERSE AUCTION: ROLE OF SERVICE PROVIDER & BIDDER

Steel Authority of India Limited (All Plants/ units) have engaged the services of its Joint Venture Company M/s mjunction Services Limited (MJ) for conducting the Reverse Auctions of Goods & Services. The purpose of such Reverse Auction would be to meet SAIL's requirement for item(s)/service(s) from the Sellers / Bidders desiring to sell the item(s)/service(s) to SAIL.

The contact details of the mjunction shall be provided by them in the Auction Notice issued by them. mjunction is authorised to give clarifications regarding the reverse auction process to Bidders on behalf of SAIL.

2. Definition of Key Terms –

Reverse Auction

A reverse auction is an auction in which the traditional roles of buyer and seller are reversed. Thus, there is one buyer and many potential sellers and the sellers compete to sell items/ services to the buyer. The sellers are required bid downwards i.e., underbid each other to win the contract.

On-line Reverse Auctions

Reverse Auctions which are conducted through the Internet with simultaneous bidding by the bidders (from one or more locations). In other words, the venue for the auction is on an Internet website/ platform. The mjunction website <https://auction.buyjunction.in> or any other URL assigned by mjunction would constitute the venue for the purpose of the on-line auction.

Award at the Reverse Auction

The bidder quoting the lowest price is declared the L-1 bidder for the item/service to be procured.

Client

SAIL who has contracted with mjunction to conduct the Reverse Auction.

Bidder

Individual/business entity participating in the Reverse Auction, intending to supply the item(s)/service(s) to the Client which has to secure Client approval for participation and provide written acceptance to the General Rules and Regulations.

Auction Engine

The software that encapsulates the entire auction process, processing logic and information flows. mjunction is the sole owner of the auction engine and retains exclusive right over the utilization of the same.

Preview Time

Preview Time refers to the period of time that is provided prior to the commencement of bidding.

Start Time

Start time refers to the time of commencement of the conduct of the On-line auction.

Duration of the Reverse Auction

It refers to the length of time the price discovery process is allowed to continue by accepting bids from competing bidders. The duration of the auction would normally be for a pre-specified period of time. The same may however be subject to bidding rules.



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Auto Extension of the Auction Timings

In the event of bids received in the last few minutes of the scheduled bid time, the Bid Timings are automatically extended for a specified period from each such bids placed. Such Auto Extension shall continue until no bids are placed for the specified period (i.e., the auction engine remains inactive for the specified period). The Inactivity Time for Auto Extension purpose is normally 5 minutes. mjunction however retains the right to change the same. The Inactivity time applicable for the particular On-line Bid shall be communicated to the bidder before the bidding process starts, if it is set for less or more than 5 minutes or more.

End of the Reverse Auction

Termination of the bidding event signaling an end to the price discovery process.

Auction Report

Report provided by mjunction containing a summary of the bidding event and outcome.

Start Bid Price

Price decided by the client from where the auction starts which would be put up on the site before commencement of Reverse Auction and also communicated in advance to all the bidders by mjunction. Bidder(s) have to quote a price lesser than the Start Bid Price while participating in the Reverse Auction.

Minimum Decrement

Minimum decrement is the minimum amount a Bidder has to reduce in order to place its bid. It shall be specified in each case prior to start of Reverse Auction. This minimum decrement shall be pre-decided by Client and will be in-built in the auction engine. **(For cases where foreign bidders are bidding in Landed Cost Net of input Tax credit (LCNITC) & Indian Rupee (INR) (Currency Conversion will be rounded off to the nearest whole number)**

3.0 Process of On-line Reverse Auction:

- 3.1 For tenders issued by SAIL plants/ units, bidders submit their Techno Commercial (TC) bids and the price bids, on or before the due date of tender opening. The price bids shall be submitted by the Bidders online on the SRM platform / EPS Platform or on the buyjunction platform of mjunction as stated in the RFQ terms. In case price is submitted on buyjunction platform of mjunction, a system generated acknowledgement of submission of online sealed price bid submitted prior to TOD on the buyjunction platform of mjunction, which is to be submitted with the TC Bid. The process for submitting online price bid on the buyjunction platform of mjunction is placed at **Annexure A**.
- 3.2 In case SAIL Plants/Units decide to conduct Reverse Auction, SAIL Plants/Units shall inform mjunction about all bidders whose offers are found techno-commercially acceptable. These techno-commercially acceptable bidders shall become eligible for participating in price bidding through On-line Reverse Auction. SAIL Plants/ Units shall intimate the list of Techno-Commercially acceptable Bidders to mjunction.
- 3.3 All eligible bidders having ID & password can after connecting view the bidding on the computer screen and enter their prices any number of times during the duration of RA event.
- 3.4 The L-1 price matching will not be done in the RA event. If Price matching is required to be done, the same will be done by mjunction after finalization of L-1 price by SAIL Plants / Units.



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4.0 Role of Service Provider mjunction

4.1 Communication w.r.t Reverse Auction shall be done by mjunction with the authorized representative of Bidders as furnished by Bidders in the Techno commercial bid. The approved bidders will be provided the following information specific to any particular auction:

- i. Preview time & Start Time
- ii. Duration of the Reverse Auction and the Auto extension of the pre specified auction timings
- iii. Total number of Items/Markets/Lots etc. for price-discovery.
- iv. Brief on RA strategy to be employed
- v. Start Bid Price (Market wise in case of multiple Markets), if required
- vi. Minimum bid decrement.
- vii. Loading Factor, if any (w.r.t payment term deviation/any other)
- viii. Special instructions, if any e.g. Exchange rate in case of participation of foreign bidders,
- ix. Issue "Auction Notice" to eligible bidders

4.2 **Vendor Enablement-** mjunction will:

- i. Familiarize the Techno Commercially acceptable bidders with the Reverse Auction Process (including training to the vendors).
- ii. Explain about the process of participating in Reverse Auction event and also provide training to all the eligible bidders regarding the same. Provide the Login ID and Password to all the Techno Commercially acceptable bidders to participate in the Reverse Auction.
- iii. Enable eligible bidders participation in the RA after obtaining bidders acceptance of "Auction Declaration"
- iv. Launch the screen for the Reverse Auction event at the Scheduled time.
- v. Do the price matching, if required

5.0 Roles and Responsibilities of the Bidder

The role of the bidder is outlined below:

- Get themselves acquainted to their satisfaction with the On-line bidding process by interacting with mjunction.
- Accept "Auction Declaration" to participate in the auction
- Participate in the Reverse Auction with the aim of posting their lowest best price for the auctioned item(s) in the reverse auction.
- Ensure that the User Id and password is not revealed to unauthorized persons.
- Submit their detailed price break-up for the item(s) / service(s) as per RFQ in the event the bidder becomes the Lowest bidder in the Reverse Auction process

6.0 Bidders need not pay any fee towards training or for actual Reverse Auction bidding or any other service with regard to this tender. Bidders need not subscribe to any of the services of mjunction in lieu of participation in the Reverse Auction.

7.0 **Cancellation or Reschedule:** Mjunction may cancel or reschedule the Reverse Auction in consultation with concerned SAIL Plants/ units, or do so on its own accord in case of any technical issue. The decision of mjunction either made on its own accord or after consultation with SAIL Plants/Units, shall be final.



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Annexure A

The process for submitting online price bid on the buyjunction platform of mjunction is as under:

- a. Web-page to be accessed through the URL: <https://www.buyjunction.in>.
- b. There is a link in the above web-page under the section “Open Tender” through which vendors can access the required Request for Quotation (RFQ)/Tender against which sealed price bids are to be accepted
- c. The above mentioned link would be kept active by mjunction till the due date and time of submission of RFQ/Tender or as per directives/ corrigendum issued by SAIL Plants/Units in case of Open Tender Enquiry (OTE)/Global Tender Enquiry (GTE) or as per instructions in RFQ/tender documents in Limited Tender Enquiry (LTE).
- d. Existing bidder who has earlier registered in mjunction e-platform shall have direct access to the platform. They would be able to do this by using their existing user IDs and passwords after clicking the above link.
- e. New bidder would have to click the link “New User” which would then throw open a pop-up screen showing details on how to (a) register online (b) receive user ID/password on their registered email with which they have registered online and (c) place their bids. With this, new bidders would also become enabled to log in and participate on mjunction e-platform.
- f. After logging in (with respective user IDs/ passwords), bidders shall be directed to a web-page where detailed road map (user manual) on how to place bids would be displayed.
- g. Each bidder can login and place/register a sealed price bid on mjunction e-platform within the stipulated period stated in point ‘c’ above.
- h. Each bidder shall be provided with a system generated acknowledgement of submission of online sealed price bid submitted prior to TOD on the buyjunction platform of mjunction which can be printed.

In case any vendor submits online Price Bid but the Techno-Commercial bid has not been submitted on or before Tender Opening Date (TOD), such online Price Bids will not be considered by SAIL Plant/Unit.



STEEL AUTHORITY OF INDIA LTD.

{A Government of India Enterprises}

SAIL GROWTH WORKS, KULTI

P.O. KULTI, DIST: PASCHIM BARDHAMAN, WEST BENGAL - 713343
TEL. NO. +91 7605056879 / +91 9477702505, FAX NO: 0341-2516016
Email: upadhyay.amitosh@mjunction.in / mkbhangre.sgw@gmail.com

RFQ No: **SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026**

Annexure – III

Format for submitting Price Break-up

*(To be submitted on Company Letter Head of the Bidder,
Within One Working Day from On-line Auction either through Fax or through courier)*

**Sub: Online Reverse Auction for High Capacity Draft Gear with Follower
as per Drawing No. WD-71-BD-15 (Rev.01)
for M/s SAIL GROWTH WORKS, KULTI**

Sl. No.	PRICE COMPONENTS		Percent		Rs. / No. (Landed Cost Net off GST)	
A	BASE PRICE (ex- works + packaging)					
B	FORWARDING CHARGES					
C	FREIGHT (all inclusive)					
D	INSURANCE (all inclusive)					
E	Total price before GST					
F	SGST	IGST				
	CGST					
	Total GST					
G	Gross Landed Cost Including GST					
I	LANDED COST NET OFF GST (LCNG) (G-F)					

Signature & Name :
Designation :
Date :

M.K. BHANGRE
GM (CC, MM, S&F)
SAIL Growth Works, Kulti,
P.O. Kulti – 713343
Dist. Paschim Bardhaman



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TEL. NO. +91 7605056879 / +91 9477702505, FAX NO: 0341-2516016
Email: upadhyay.amitosh@mjunction.in / mkbhangre.sgw@gmail.com

RFQ No: SGWK/PUR/25-26/S&F/DRAFT GEAR/OTE/RA/048, Dated: 28.02.2026

Annexure-G

GST TAXES

- For the purposes of levy and imposition of GST, the expressions shall have the following meanings:
 - GST - means any tax imposed on the supply of goods and/or services under GST Law.
 - Cess – means any applicable cess, existing or future on the supply of Goods and Services as per Goods and Services Tax (Compensation to States) Act, 2017
 - GST Law - means IGST Act 2017, CGST Act 2017, UTGST Act, 2017 and SGST Act, 2017 and all related ancillary Rules and Notifications issued in this regard from time to time.
- The rates quoted by the Vendor/Supplier/Contractor shall be inclusive of all taxes, duties, levies and Cess except GST. Vendor/Supplier/Contractor has to clearly show the amount of GST separately in the Tax Invoices raised by them. Further, it is the responsibility of the Vendor/Supplier/Contractor to make all possible efforts to make their accounting/IT system GST compliant in order to ensure timely availability of Input Tax Credit (ITC) to SAIL-SGW.
- SAIL-SGW shall declare in the Tender about value of free issue of material and services, if any, involved in the execution of the contract. The Contractor should consider the same while working out the GST liability, if any. Further in cases where GST is leviable on any facilities provided by SAIL and used by Vendor/Supplier/ Contractors and the consideration for which is recovered by SAIL-SGW in the form of reduction in the value of invoice raised by Vendor/Supplier/Contractor, then SAIL-SGW will raise GST invoices on such transactions and the same will be borne by Vendor/Supplier/Contractor.
- Evaluation of L-1 prices shall be done based on landed cost net of Input Tax Credit of GST, if available to SAIL-SGW. SAIL-SGW shall evaluate the offers on the basis of the quoted rates only and any claim subsequently by the Vendor/Supplier/Contractor for additional payment/liability shall not be admitted and has to be borne by the Vendor/Supplier/Contractor. The supplier under Composition Scheme should carefully understand the implication of Input Tax Credit (ITC) before quoting the rates. Composition scheme is available only in respect of intra-state supply of goods, if taxable turnover of vendor is up to Rs.75 Lakhs.
- For the purpose of this contract, it is agreed between the parties that if any new taxes, duties or levies other than GST is introduced subsequent to the final date of submission of tender or reverse auction by the Central/State Government & Local Authorities and such new taxes, duties or levies become payable, then an equitable adjustment on account of new taxes, duties or levies in the contracted price shall be made which shall be subject to the production of documentary evidence by the Vendor/Supplier/Contractor. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows:
 - If input tax credit (ITC) is available, the adjustment in contract price for such new tax shall be made.
 - In other cases (i.e. where tax credit is not available), adjustment in contract price shall be made only if the new tax is enacted during the period of extension arising out of reasons attributable to SGW.
- In case of variation (increase/decrease) in the rate of GST after the final date of submission of tender or reverse auction, the said revised rate shall be reimbursed or recovered on production of relevant statutory documentary evidence. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows:
 - If input tax credit (ITC) is available, the said revised rate shall be reimbursed or recovered
 - In other cases (i.e. where input tax credit is not available), the said revised rate shall be reimbursed or recovered only if the reasons for extension of the contract is attributable to SAIL-SGW. In any case, recovery shall be made in case of a downward variation in the rate of tax.
- Vendor/Supplier/Contractor agrees to do all things not limited to providing GST complaint Tax Invoices or other documentation as per GST law relating to the supply of goods and/or services covered in the instant contract like raising of and/or acceptance or rejection of credit notes/debit notes as the case may be, payment of taxes, timely filing of valid statutory Returns for the tax period on the Goods and Service Tax Network (GSTN), submission of general information as and when called for by SAIL in the customized format shared by SAIL in order to enable SAIL to update its database etc. that may be necessary to match the invoices on GSTN common portal and enable SAIL-SGW to claim input tax credit in relation to any GST payable under this Contract or in respect of any supply under this Contract.
- In case Input Tax Credit of GST is denied or demand is recovered from SAIL-SGW by the Central/State Authorities on account of any non-compliance by Vendor/Supplier/Contractor, including non-payment of GST charged and recovered, the Vendor/Supplier/Contractor shall indemnify SAIL-SGW in respect of all claims of tax, penalty and/or interest, loss, damages, costs, expenses and liability that may arise due to such non-compliance. SAIL-SGW, at its discretion, may also withhold/recover such disputed amount from the pending payments of the Vendor/Supplier/Contractor.
- Vendor/Supplier/Contractor shall maintain high GST Compliance at any given of point of time
- Vendor/Supplier/Contractor is required to pass on the benefit arising out of introduction of GST, including seamless flow of Input Tax Credit, reduction in Tax Rate on inputs as well as final goods by way of reduction of price as contemplated in the provision relating to Anti-Profiteering Measure as per CGST Act, 2017.
- Vendor/Supplier/Contractor shall avail the most beneficial Notifications, abatements, exemptions etc., if any, as applicable for the supplies under the Goods and Service Tax Act.

TDS FOR INCOME TAX

Tax deduction at source (TDS) shall be made towards income tax from all the bills of the contractor at applicable rates as per Income Tax Act and Rules.

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SAIL- P1

1.0 Definitions:

- a) “Contract/ Agreement” means the Contract agreement entered into, signed by the Company and the Supplier or the Letter of Acceptance (LOA)/ Purchase Order (PO) issued by the company together with all the contract documents from the tender to issue of LOA/ PO.
- b) “Company” means Steel Authority of India Limited (SAIL), a Company registered under Indian Companies Act 1956 and having its registered office at Ispat Bhawan, Lodhi Road, New Delhi –110003, India, its Plants / Units / Mines / Offices and includes its legal successors and assignees.
- c) Purchaser” shall mean the “Plants / Units / Mines / Offices” of Steel Authority of India Limited, and includes its successors and assignees
- d) Bidder” or “Tenderer” means the individual, firm or company who has submitted a valid Bid /Tender.
- e) Supplier/Vendor/Contractor” means the “Successful Bidder”/ “Successful Tenderer” i.e. the individual, firm or company etc. whose Bid has been accepted and on whom LOA/Purchase Order has been placed OR who enters into the Contract/ Agreement to supply the material. The term includes the Supplier’s authorized representatives, legal successors and permitted assigns.
- f) “Stores” shall mean the materials contracted for supply as per quantities and specifications indicated in the contract.

1.1 Terms / Conditions & expressions not herein defined shall have the same meaning as assigned to them in the Indian Contracts Act 1872 & Sales of Goods Act 1930, as amended from time to time.

1.2 **General Disclaimer:** Unless otherwise specified in the RFQ, the terms and conditions stipulated herein shall be applicable. In case of any mismatch between clauses stated herein and that appearing in RFQ/ contract, the clauses appearing in the RFQ/ contract shall prevail.

2.0 Authority of person signing documents:

- a) A person signing the Tender Form or any document forming part of the contract on behalf of the supplier shall be deemed to warrant that he has authority to sign such documents.

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- b) In case of e-procurement, the submission of On-Line Quotation / Bid through the e-Procurement System by any authorized representative of the Tenderer who logs on to the system with the valid ID and password and/or uses digital signature to sign tender or submitted documents shall be taken as valid and the Tenderer shall be fully responsible for the execution of the Contract arising therefrom.

3.0 Rejection of bid / tender: In case of any specific adverse report received against a tenderer by SAIL, in respect of capabilities and / or performance of the tenderer, the bid of such tenderer is liable to be rejected.

4.0 Reverse Auction: In case price discovery through reverse auction has been envisaged in a tender, SAIL may or may not resort to reverse auction as a part of its procurement strategy, or for any other reason. Decision of SAIL, in this regard, will be final & binding.

5.0 Responsibility for Performance of Contract:

- a) The Supplier shall be entirely responsible for the performance of the contract in all respects in accordance with the terms and conditions as specified in the Contract.
- b) Wherever, the supplier is an authorized dealer / representative of the manufacturer, both the authorized dealer/ representative and the manufacturer will be jointly & severally responsible for the performance of the contract in all respects in accordance with the terms and conditions as specified in the Contract.
- c) The Supplier shall not sublet, transfer or assign the contract without the prior written permission of the Purchaser. In case permission is given by the Purchaser, Supplier shall be liable for any loss or damage which the Purchaser may sustain in consequence or arising out of such subletting of the contract.
- d) The Supplier may assign the receivables, revenues or proceeds under the Contract/Agreement in connection with any financing or other financial arrangement (without relieving itself from liabilities under the Contract / Agreement).
- e) In case the scope of work includes supply of material along with application, then the vendor must comply with all relevant safety norms of SAIL Plants/ units and applicable statutory provisions.

6.0 Samples and testing:

- a) **Samples:** Samples, wherever required for examination & testing, shall be supplied by the tenderer free of cost.
- b) **Testing:** Wherever the materials involve testing for acceptance, Tenderers shall clearly indicate the availability of testing facilities in their premises and confirm testing free of charge. In case material is tested at Purchaser's premises, no charges need to **be paid** by the Supplier.
- c) If item is required to be tested at outside laboratory (not in the Purchaser's premises), testing charge will be borne by Purchaser. However, only in case of testing of Umpire

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Sample in an outside lab, if the Umpire sample fails, the Supplier shall bear the expenses of the Umpire sample testing.

7.0 Inspection

- a) **Inspection:** Inspection, if required may be carried out by the Purchaser or his authorized agent at destination, or at the Supplier's premises or at any other place as the Purchaser may deem fit as stipulated in the Contract during different stages of manufacture including final Pre-dispatch inspection and accordingly Inspection Certificates shall be issued.
- b) **Notification by Supplier** -In case of inspection at the Supplier's premises, notice in writing shall be sent by the Supplier, sufficiently in advance, to the Purchaser when the stores to be supplied are ready for inspection. In case of third party inspection, notice shall be given directly to the third party inspection agency under intimation to purchaser; all charges for third party inspection shall be borne by the Supplier unless specified otherwise.
- c) **Removal of Rejection**—Any stores inspected and rejected at Purchaser's premises must be removed by the Supplier within 30 days from date of receipt of intimation of rejection of supplies in case of indigenous suppliers & 45 days in case of foreign suppliers. In case of dangerous, infected or perishable stores, Supplier will be asked to remove the material within 48 hours and the decision of the Inspecting Officer in this regard shall be final in all respects.
If the rejected goods have already been paid for (partly or fully), the Supplier shall before removal of rejected goods, either deliver correct replacement goods at Purchaser's premises completely free of cost (including cost of goods , freight, taxes, duties etc.) or refund the payment received as well as make full compensation for freight taxes , duties etc. Such rejected Stores shall lie at Supplier's risk from the time of such rejections and if not removed within the above time limit, the Purchaser shall have the right to dispose off the said rejected materials as he may deem fit without any financial obligation to the Supplier.
In case the payment of rejected material has already been made by the Purchaser (partly or fully) and such rejected materials are disposed off by the Purchaser due to non removal of the same by the Supplier, then the Supplier shall be liable to make good the loss incurred to the Purchaser. To make good of such loss, the Supplier also agrees that the said loss may be recovered from any outstanding amount lying with the Purchaser from any contract with the Supplier.

8.0 Suppliers responsibility:

The Supplier should undertake to be responsible for the delivery of the goods in satisfactory condition and without any loss or damage at the final destination and until the same is actually receipted by the Purchaser at its works or other place of final destination. For this purpose goods carried by the railway or other carrier shall be deemed to be carried at the risk of the Supplier). If on inspection at final destination

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the Purchaser discovers any discrepancy, the Purchaser will be entitled (notwithstanding that the property of goods shall have passed on to the Company) to refuse acceptance of the goods altogether and claim damages and/or cancel the Contract and buy its requirement in the open market at the risk and cost of the Supplier, reserving always to itself, the right of forfeiture of any amount found due and payable or the deposit, if any, placed by the Supplier for the due fulfillment of the Contract as also to recover any amount, if already paid.

9.0 Packing:

- a) **Responsibility for proper packing** – The Supplier shall be responsible for the stores being sufficiently and properly packed, for transport by rail/road/sea/air/ or any combination of above, so as to ensure their being free from loss or damage on arrival at the destination. Packing material shall not be returned to the Supplier, unless stated otherwise. The extant government guidelines with regard to packing material , wherever applicable, shall be adhered to by the supplier
- b) **Marking of Packages, Packing, etc.** - Each package delivered under the Contract shall bear the following:-
 - Name of the Supplier & address
 - Contract Number & date
 - Consignee's name and address
 - Brief Description and quantity of contents
 - Wherever applicable the following should be indicated:
 - ✓ Gross weight, net weight
 - ✓ Distinctive number or mark / identification which is also to be shown, for the purpose of identification, on the Supplier's packing list.

10.0 Test and Fitment Certificate:

The Supplier must furnish test certificate for the material shipped showing the details of test results. Fitment certificate is required in case of proprietary spares / components.

11.0 Delivery:

- a) Timely delivery is the essence of the Contract & must be completed as per the dates specified therein.
- b) The Supplier shall deliver items preferably on F.O.R. Stores basis of the Purchaser indicated in the Contract and in accordance with the delivery terms indicated therein.
- c) Notification of delivery or dispatch in regard to each and every consignment shall be made to the authorities named in the Contract.

11.1

The Purchaser shall be entitled to the benefit of any decrease in price on account of reduction in or remission of GST, customs duty or on account of any other Tax or

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duty or any other ground as stipulated in the price variation clause or foreign exchange rate variation or any other variation clause which takes place during the stipulated delivery period in the contract. **Extension of Delivery Period:** If at any time during the currency of the Contract, the Supplier/ Contractor encounters conditions hindering timely delivery of the Goods and performance of incidental Works/ Services, he shall promptly inform SAIL in writing about the same and its likely duration. The Supplier/ Contractor must make a request to SAIL for an extension of the delivery schedule. On receiving the Supplier/ Contractor's communication, the Purchaser shall examine the situation and, at its discretion, may agree to extend the delivery schedule, with or without liquidated damages by issuing an amendment to the Contract.

A) Conditions for Extension of Delivery Period with Liquidated damages: When the period of delivery is extended due to unexcused (i.e., where the delay is not attributable to Purchaser) delay by the Contractor, the amendment extending the delivery period shall, inter- alia be subject to the following conditions:

- i) SAIL shall recover from the Supplier/ Vendor/Contractor, under the provisions of this clause, liquidated damages on the such supplied Goods and incidental Works/ Services, which the Supplier/ Vendor/Contractor has failed to deliver within the delivery period stipulated in the Contract.
- ii) No increases in price on account of any statutory increase in or fresh Imposition of GST, customs duty or on account of any other taxes/ duty/ cess/ levy, leviable in respect of the Goods and incidental Works/ Services stipulated in the said Contract which takes place after the original delivery date, shall be admissible on such part of the said Goods, as are delivered after the said date, however the same shall be admissible to the extent for which Input Tax Credit (ITC) is admissible against these levies; and
- iii) Notwithstanding any stipulation in the Contract for an increase in price on any other ground, including price variation clause or foreign exchange rate variation, or any other variation clause, no such increase after the original delivery date shall be admissible on such goods delivered after the said date.

B) If the delay in completion of supplies is attributable to Purchaser or Force Majeure conditions then Liquidated Damages will not be levied.

12.0 Failure of Delivery:

In case the delivery is delayed beyond the prescribed delivery period, the material can only be supplied with prior consent of the purchaser. Should the Supplier fail to deliver the stores or any consignment thereof, within the period prescribed for such delivery, the Purchaser shall be entitled at his option, to the following:

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a) Liquidated Damages:

In event of supply not being effected within the contractual delivery schedule liquidated damages @ 0.5%, not by way of penalty, of the value of the materials without taxes, duties & freight, per week or part thereof of delay, subject to maximum of 10%, (or as applicable in the case of MSE as per extant SAIL MSE guideline) is recoverable from the Supplier without prejudice to the rights of Purchaser to procure the balance material at the risk and cost of the Supplier. The payment or deduction of such damages shall not relieve the Supplier from the contractual obligations to complete the supply or balance portion thereof in time as stipulated in the Contract.

b) Risk Purchase :

Subject to the terms and conditions of this Agreement, if the Supplier neglects or fails to perform the Agreement by the time or times agreed upon, for any reason other than Force Majeure, the Purchaser after having come to know of such negligence or non-performance, after giving 14 to 30 days notice or any such extended period that the Supplier and Purchaser may mutually agree, to the Supplier to rectify, shall take such action as it considers fit including but not limited to taking risk purchase action for supply of the material, mitigating any losses, at the risk and cost of the Supplier as far as the undelivered quantity in that Delivery Period is concerned. The Right of the Purchaser for Risk Purchase Action is in addition to the Right of Purchaser to terminate the Contract due to the fault of the Supplier.

The price differential in case of higher cost to SAIL, if any, shall have to be borne by the defaulting Supplier. Moreover, the defaulting Supplier shall have no claim over the quantity, which they failed to supply.

13.0 Freight:

- a) For road dispatches, the Stores are to be dispatched through the Purchaser's authorized Transporters unless otherwise specified.
- b) In the case of "dispatch by Rail and F.O.R. Station of Dispatch" contract the Stores should be booked at full rake load in case of bulk materials and full wagonload for others, wherever applicable, through the most economical route. Failure to do so will render the Supplier liable for the whole or part of any avoidable expenditure, caused to the Purchaser.

The specified goods / items shall be dispatched by Railways at Public Tariff Rate. Railway Material Concession Rate and Railway/Carrier's Risk as may be specified in the Contract.

14.0 Weighment:

For bulk material to be accepted by weight, all the trucks / wagons / trailers / tankers etc. shall be weighed at the destination at the Purchaser's weighbridge(s).

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Supplier's challan weight for each truck / wagon / trailer / tanker etc. shall be accepted as final, if the weighment at Purchaser's premises for that truck / wagon / trailer / tanker etc. is within the tolerance range indicated in the Contract. If the weighment at Purchaser's weighbridge(s) is found to be more than the challan weight, the payment shall be restricted to the challan weight.

In case the weighment at Purchaser's weighbridge(s) is found to be less than challan weight even after allowing the tolerance range indicated in the Contract, the weighment at Purchaser's premises shall be final for the purpose of payment.

15.0 Taxes, Duties & Levies:

- a) Tenderers must clearly mention their E.C.C No. and GST Registration No. as applicable on supplies in their offers and invoices.
- b) GST, Excise Duty, and Countervailing Duty (CVD), etc. shall be clearly mentioned in the offer indicating the applicable rates. In case order is placed on the tenderer, fresh imposition or variation in statutory taxes / duties / levies, if imposed beyond the contractual delivery period, shall be admissible / availed of, provided it is Cenvat/ ITC/ setoff is admissible against these levies to SAIL.
- c) **TCS/TDS under Income Tax:**
Tax Collection at Source/ Tax Deduction at Source (TDS) shall be made towards Income Tax from all the Invoices of the Vendor/Supplier/Contractor at applicable rates as per Income Tax Act and Rules.

15.1 GST :

- a) For the purposes of levy and imposition of GST, the expressions shall have the following meanings: a) GST –means any tax imposed on the supply of Goods and/or Services under GST Law. b) Cess–means any applicable Cess, existing as on date or applicable in future on the supply of Goods and Services as per Goods and Services Tax (Compensation to States) Act, 2017. c) GST Law - means IGST Act 2017, CGST Act 2017, UTGST Act, 2017, SGST Act, 2017, GST (Compensation to States) Act, 2017 and all related ancillary Rules and Notifications issued in this regard from time to time.
- b) The rates quoted by the Vendor/Supplier/Contractor shall be inclusive of all taxes, duties, levies and Cess except GST and Compensation Cess. Vendor/Supplier/Contractor has to clearly show the amount of GST/Compensation Cess separately in the Tax Invoices raised by them. Further, it is the responsibility of the Vendor/Supplier/Contractor to make all possible efforts to make their Accounting/IT system GST compliant in order to ensure timely availability of Input Tax Credit (ITC) to SAIL.

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- c) In cases where GST is leviable on any facilities/supplies provided by SAIL and used by Vendor/Supplier/Contractors in the execution of Purchase Order/Work Order/Contract and the consideration for which is recovered by SAIL in the form of reduction in the value of invoice raised by Vendor/Supplier/Contractor, then SAIL will raise GST Invoices on such transactions and the same will be borne by Vendor/Supplier/Contractors.
- d) Evaluation of L-1 prices shall be done based on landed cost net of Input Tax Credit (ITC) of GST, if ITC is available to SAIL. SAIL shall evaluate the offers on the basis of the quoted rates only and any claim subsequently by the Vendor/Supplier/Contractor for additional payment/liability shall not be admitted and has to be borne by the Vendor/Supplier/Contractor. The supplier under Composition Scheme should carefully understand the implication of Input Tax Credit (ITC) before quoting the rates.
- e) For the purpose of the tender / Purchase Order/Work Order/Contract issued pursuant to the tender, it is agreed between the parties that if any new taxes, duties or levies other than GST is introduced subsequent to the final date of submission of tender or reverse auction by the Central/State Government/Local Authorities and such new taxes, duties or levies become payable, then an equitable adjustment on account of new taxes, duties or levies in the contracted price shall be made which shall be subject to the production of documentary evidence by the Vendor/Supplier/Contractor. This provision shall be applicable only during the original period of Contract. However, during the extended period of Contract, if any, this provision shall be applicable as follows:
 - i. If Input Tax Credit (ITC) is available, the adjustment in contract price for such new tax shall be made.
 - ii. In other cases (i.e., where Input Tax Credit (ITC) is not available), adjustment in contract price shall be made only if the new tax is enacted during the period of extension arising out of reasons attributable to SAIL.
- f) In case of variation (increase/decrease) in the rate of GST after the final date of submission of tender or reverse auction, the said revised rate shall be reimbursed or recovered on production of relevant statutory documentary evidence. This provision shall be applicable only during the original period of Contract. However, during the extended period of Contract, if any, this provision shall be applicable as follows:
 - i. If Input Tax Credit (ITC) is available, the said revised rate shall be reimbursed or recovered.
 - ii. In other cases (i.e. where Input Tax Credit (ITC) is not available), the said revised rate shall be reimbursed or recovered only if the reasons for extension of the contract is attributable to SAIL. In any case, recovery shall be made in case of a downward variation in the rate of tax.

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- g) Vendor/Supplier/Contractor agrees to do all things not limited to providing GST compliant Tax Invoices/e-invoices/ GST Debit notes or other documentation as per GST law relating to the supply of Goods and/or Services, payment of taxes on timely basis, timely and correct filing of valid statutory Returns (including FORM GSTR-1 and FORM GSTR-3B) for the tax period on the Goods and Service Tax Network (GSTN), submission of general information as and when called for by SAIL in the customized format shared by SAIL in order to enable SAIL to update its database etc. that may be necessary to match the Invoices on GSTN Common Portal and enable SAIL to claim Input Tax Credit in relation to any GST payable under this Contract/Purchase Order/Work Order. GST charged on Debit notes shall be reimbursed only if such Debit notes are issued within the prescribed time limit (given at clause h below) for availment of Input Tax Credit.
- h) In the event Supplier issues a Credit note to the SAIL, such Credit note shall include GST component only in circumstances set out under Section 34 of CGST Act, 2017 and upon mutual agreement between Supplier and SAIL. This shall be subject to the condition that Supplier shall comply with the procedural requirements relating to issuance of Credit notes under the GST law. For scenarios other than those provided in Section 34 of CGST Act, 2017, a commercial credit note may be issued (without any GST component) instead of a GST credit note upon mutual agreement between Vendor/Supplier/Contractor and SAIL.
- i) The Vendor/Supplier/Contractor is required to ensure that the original copy of the Invoice/Debit Note/Credit Note is submitted to the SAIL within 15 (Fifteen) days of issuance of such document.
The Vendor/Supplier/Contractor is required to provide and separately intimate the details of any amendments done on GST Portal in respect of any Invoice/Debit Note/Credit Note earlier uploaded by them to SAIL, on real time basis.
- j) W.e.f. 09.10.2019, with the introduction of Rule 36(4) of CGST Rules and the corresponding restriction of eligible ITC, it is important that the respective Vendor/Supplier/Contractor reports the details of outward supplies in its FORM GSTR-1, on timely basis, to facilitate auto-population of details in FORM GSTR-2A at SAIL's end.
- k) In case, such details do not auto-populate in FORM GSTR-2A of SAIL, due to fault/mistake/ delay at Vendor/Supplier/Contractor's end, SAIL will not disburse the GST component to the respective Supplier. In other words, only when the Vendor/Supplier/Contractor discloses the details of outward supplies in its FORM GSTR-1 and the corresponding ITC gets auto-populated in FORM GSTR-2A, SAIL will be in a position to avail ITC and consequently disburse the tax component to the Suppliers. Any GST component, even if disbursed by SAIL, would be recoverable by SAIL as a deduction from future bills or by any other means as per the contractual terms.

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- l) In case Input Tax Credit (ITC) of GST paid on input supplies is denied or demanded/recovered from SAIL by the Central/State Tax Authorities on account of any non-compliance by Vendor/Supplier/Contractor, including the non-compliance of e-invoicing provisions by the Vendor/Supplier/Contractor or non-payment of GST charged and recovered, the Vendor/Supplier/Contractor shall indemnify SAIL in respect of all claims of tax, penalty and/or interest, loss, damages, costs, expenses and liability that may arise due to such non-compliance. SAIL, at its discretion, may also withhold/recover such disputed amount from the pending payments of the Vendor/Supplier/Contractor with SAIL and also from any dues payable or deposit refundable by any other Plant/Unit of SAIL to such Vendor/Supplier/Contractor.
- m) Vendor/Supplier/Contractor shall maintain high GST compliance rating track record at any given point of time. In case, where the GST e-invoicing provisions are applicable to a Vendor/Supplier/Contractor, but he fails to issue-invoice, SAIL would not be in a position to avail ITC of input supplies provided by the Vendor/Supplier/Contractor. Under such circumstances, any loss of ITC in the hands of SAIL due to non-compliance of e-invoicing provisions at Supplier's end, shall be directly recovered from such Vendor/Supplier/Contractor.
- n) **Anti-Profitteering:**
Vendor/Supplier/Contractor is required to pass on the benefit arising out of introduction of GST, including seamless flow of Input Tax Credit, reduction in Tax Rate on inputs as well as final Goods and/or Services by way of reduction of price as contemplated in the provision relating to Anti-Profitteering Measure as per CGST Act, 2017.
- o) Vendor/Supplier/Contractor shall avail the most beneficial Notifications, abatements, exemptions etc., if any, as applicable for the supplies under the Goods and Service Tax Act.
- p) SAIL shall charge the applicable GST over and above on the forfeiture of deposit due to violation of terms and conditions of the Contract by Vendor/Supplier/Contractor as well as on the liquidated damages deducted from the price payable to the Vendor/Supplier/Contractor against supply of Goods or Services. Similarly, for recovery under the Contract/Purchase Order/Work Order for shortfall in guaranteed performance or deviation in quality in terms physical or chemical or other specified norms or for underloading or overloading of wagons while dispatching contractual production to SAIL Steel Plant or any other entity as per direction of SAIL or any other recovery as per the terms of Contract/ Purchase Order /Work Order, SAIL shall also charge the applicable GST on all such recoveries.
- q) Bidder is required to provide the self-attested copy of his GST Registration certificate and complete address of his principal place of business and branches if any.

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- r) In case the Bidder is registered under Composition Scheme, then they should clearly mention in the offer that they are covered under Composition Scheme and no GST will be charged separately against execution of the Contract.
- s) SAIL shall deduct Tax Deducted at Source (TDS) under GST as applicable as per the provisions of GST law while making payment to the Vendor/Supplier/Contractor

16.0 Bank details: The vendors shall be required to submit details of their bank account in the enclosed ECS mandate form in the tender for enabling SAIL to make payment in e-mode.

17.0 Guarantee / Warranty: Unless specified otherwise, the Supplier must repair or replace free of charge or reimburse the amount to the Purchaser as the sole remedy for any stores & spares which owing to defect in design, material or workmanship fail or show signs of failure at any time within 12 months from date of putting them to use / operation or 18 months from date of delivery, whichever is earlier.
In case of any rectification of a defect or replacement of any defective Goods during the warranty period, the warranty for the rectified/ replaced Goods shall remain till the original warranty period

18.0 Settlement for discrepant material: After receipt of material at purchaser's premises, if it is found that the material does not conform to order specification but material is found useable, intimation in this regard shall be given to supplier within 45 days of receipt of such material. Supplier shall depute his representative within 20 days of receipt of such intimation for inspection/assessment if so desired.

Purchaser shall decide the amount to be recovered from the supplier and supplier shall remit the same to the purchaser on receipt of such intimation. All costs associated with above shall be borne by supplier. Intimation by way of an e-mail in the Authorized e-mail address of the supplier without the "failure notification" shall be considered to be a valid service receipt of the intimation in case no acknowledgment of the receipt of e-mail is provided by the supplier.

19.0 Recovery of Sums due: Whenever under this Contract any sum of money is recoverable from and payable by the Supplier, the Purchaser shall be entitled to recover such sum by appropriating, in part or whole the security deposited by the Supplier, if a security is taken against the Contract. In the event of the security being insufficient or if no security has been taken from the Supplier, then the balance or the sum recoverable, as the case may be, shall be deducted from any sum due or which at any time thereafter may become due to the Supplier under this or any other Contract with the Purchaser / Company. Should this sum be not sufficient to cover the full amount recoverable the Supplier shall pay to the Purchaser / Company on demand the remaining balance due.

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20.0 Indemnity:

- a) The Supplier shall at all times indemnify the Purchaser against all claims which may be made in respect of the stores for infringement of any right protected by Patent, Registration of Design or Trade Mark. The Supplier shall be entirely responsible for the sufficiency of all the means used by them for the fulfillment of the Contract.

20.1 Limitation of Liability: Except in cases of criminal negligence or willful misconduct,

- a) The Supplier shall not be liable to the Purchaser, whether in Contract, or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs and
- b) The aggregate liability of the Supplier to the Purchaser, whether under the Contract, or otherwise including the cost of repairing or replacing defective equipment, shall not exceed 100% of the contract price plus escalation, provided that this limitation shall not apply to any obligation of the Supplier to indemnify the Purchaser with respect to copyright, patent infringement, workman compensation etc.

21.0 ForceMajeure:

- a) If, at any time, during the currency of this Contract, the performance in whole or in part, by either party, or any obligation under this Contract, is prevented or delayed by reason(s) of war, hostility, acts of public enemy, civil commotion, sabotage, fires, floods explosions, epidemic, quarantine restrictions, Acts of State or other Acts of God, hereinafter referred to as eventualities, then, provided notice of the happenings of any such eventuality is given by either party to the other, within 15 days from the date of occurrence thereof , neither party shall by reason of such eventuality be entitled to terminate this Contract, nor shall either party have any claim for damages against the other, in respect of such non-performance or delay in performance and work under this Contract shall resume as soon as practicable but within 15 days after such eventuality has come to an end or ceased to exist and the decision of the Company as to whether the work has to be resumed shall be final and conclusive.
- b) The Notice of declaration of Force Majeure must be supported by the Certificate of relevant Railway / Port Authority/Chamber of Commerce/Government or Quasi Government body. If the said certificate is not available, the Affected Party must provide a certificate signed by the Affected Party's Company Secretary and one of the Directors on the Board of the Affected Company. In addition, the Affected Party shall also intimate the cessation of such Force Majeure. The said intimation of cessation of Force Majeure shall be accompanied by a certificate, from the authorities as stated hereinabove.
- c) In case one or both parties are prevented from fulfilling their contractual obligations by state of Force Majeure lasting continuously for a period of three months, the parties may consult each other regarding further continuation of the Contract.

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22.0 Conciliation:

In the event of any conflict or dispute arising out of or in connection with the Contract, the Parties shall endeavor to settle such disputes amicably. If a dispute is not resolved within 30 (thirty) days after a written notice of any dispute by one Party to the other, the same shall then be resolved through the mechanism of Conciliation through Dispute Resolution Committee which shall comprise representatives/nominee of:

- a. **Buyer:** wherein the nominee of the buyer shall be an officer other than the officer who handled the Contract. The said nominee shall be nominated by the Head of the concerned department.
- b. **Supplier/ Service Provider.**

The said Conciliation shall be chaired by the Nominee of the Buyer.

If the Dispute Resolution Committee is not able to resolve the matter within 30(thirty) days of its formation, the Conciliation shall be deemed to have failed. It is further provided that Arbitration shall only be resorted to after the failure of Conciliation. The venue of the Conciliation shall be the concerned Plant/Unit of the buyer organization.

If the Supplier/Service Provider is MSME registered party, then conciliation shall be held as per the provisions of the MSME Act if the MSME firm does not choose to abide by the process given herein above.

23.0 Arbitration

a) For Domestic Contracts(where Supplier/Service Provider is an Indian Party):

In the event of any dispute arising out of or in connection with the Contract in question , which has not been resolved through Conciliation in accordance with the procedure laid down in Clause above, the aggrieved Party may invoke Arbitration by sending a written notice to the other Party. The procedure for appointment of the Arbitral Tribunal shall be as follows.

- i. In cases where the total value of the Contract is less than or upto INR 1, 00, 00,000/- (Indian Rupees One Crore only) the same shall be referred to a Sole Arbitrator to be mutually appointed by both the Parties.
- ii. Where the total value of the Contract exceeds INR 1,00,00,000/- (Indian Rupees One Crore only), the arbitration shall be conducted by a quorum of three arbitrators. Each party shall nominate an arbitrator and the two party-appointed arbitrators shall within 30 (thirty) days from their nomination, nominate a third arbitrator i.e., the Presiding Arbitrator.
- iii. In case of failure to nominate the Presiding Arbitrator within a period of 30 (thirty) days from the date of nomination of the two arbitrators who has been nominated later in time by the respective parties, the aggrieved party shall approach the High Court (under whose jurisdiction the principal place of business of the Buyer

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- department/ organization is located) to appoint the Presiding Arbitrator as per the provisions of the Arbitration and Conciliation Act, 1996 (as amended up to date).
- iv. The arbitration shall be conducted in the English language. Arbitration proceedings can also be conducted online, as per the discretion of the Arbitral Tribunal.
 - v. The cost of the Arbitration shall be equally borne by both the Parties.
 - vi. The arbitration shall be governed by the Arbitration and Conciliation Act, 1996, as amended from time to time. The seat of arbitration shall be at the place where the concerned Plant/Unit of the Buyer department / organization is located.
 - vii. The Contract shall be interpreted and governed in all respects in accordance with the laws of India. All disputes in connection with or arising out of the Contract, shall be subject to the exclusive jurisdiction of the Court within the local limits of whose jurisdiction concerned Plant/Unit of the Buyer Department/Organization is located.
 - viii. Where the arbitral award is for the payment of money, no interest shall be payable on whole or any part of the money for any period till the date on which the award is made.
 - ix. The Courts at the location of concerned plant/unit of the buyer organization shall have exclusive jurisdiction in relation to any dispute arising out of such Contracts.

If the Supplier/Service Provider is MSME registered party, then Arbitration shall be held as per the provisions of the MSME Act if the MSME firm does not choose to abide by the process given herein above.

b) International Contracts (where Supplier/Service Provider is a foreign party):

- i. For such Contracts, where the dispute has not been resolved through Conciliation in accordance with the procedure laid down in Clause 22.0 above, the aggrieved Party may invoke Arbitration as per the procedure laid down in rules of International Chamber of Commerce (ICC) and the rules of ICC shall apply in relation to such Arbitration.
- ii. The seat and venue of such Arbitrations shall be New Delhi and the Arbitration shall be governed by the Laws of India. The language of the Arbitration shall be English.
- iii. The Courts at New Delhi shall have the exclusive jurisdiction in relation to disputes arising out of such Contracts.

23.1 Settlement of Disputes other than taxation between SAIL and another Central Public Sector Enterprise (CPSE) or SAIL and Govt Department(s)/Organization(s) including State Government shall be as per the prevailing guidelines of Government of India. In event of any dispute or difference in interpretation and application of the provisions of commercial contract(s) between CPSE/ Port trusts inter se and also between CPSEs and Government Departments/ Organizations (excluding disputes relating to Railways, Income Tax, Customs & Excise Departments), such disputes or difference shall be taken up by either party for

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its resolution through AMRCD as mentioned in DPE OM No. 05/0003/2019-fts-10937 dated 14th December 2022 and decision of AMRCD on the said dispute will be binding on both the parties.”

24.0 Declaration by the Tenderer:

By participation in this tender the Bidder / Tenderer is deemed to have solemnly affirmed / certified / declared / warranted / undertaken / understood the following:

A. Non-collusion:

- I. That their bid was developed genuinely, independently and made with the intention to accept the Contract if awarded;
- II. That their bid was not prepared with any agreement, arrangement, communication, understanding, promise of undertaking with any person (including any other tenderer or competitor) regarding:
 - i) prices;
 - ii) methods, factors or formulas used to calculate prices;
 - iii) an intention or decision to submit a bid;
 - iv) an intention or decision to withdraw a bid;
 - v) the submission of bid that does not conform with the requirements of the tender;
 - vi) the quality, quantity, specifications or delivery particulars of the products or services to which this tender relates; and
 - vii) the terms of the bid,
- III. **That they will not, prior to the award of the Contract, enter into or engage in any of the foregoing.**

Note:

This para is not applicable to Agreements, arrangements, communications, understandings, promises or undertakings with:

- a. the Plants/ Units, Steel Authority of India Limited*
- b. a joint venture partner, where joint venture agreements, arrangements, relevant to the bid exist and which are notified to Steel Authority of India Limited;*
- c. consultants or sub-contractors, provided that the communications are held in strict confidence and limited to the information required to facilitate that particular consultancy arrangement or sub-contract;*
- d. professional advisers, provided that the communications are held in strict confidence and limited to the information required for the adviser to render their professional advice in relation to the Tender;*
- e. insurers or brokers for the purpose of obtaining an insurance quote, provided that the communications are held in strict*

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confidence and limited to the information required to facilitate that particular insurance arrangement; and

- f. Banks for the purpose of obtaining financing for the contract, provided that the communications are held in strict confidence and limited to the information required to facilitate that financing.*

- B.** That they have duly disclosed all intended sub-contracting arrangements relating to the Tender and will continue to disclose such arrangements to the Plants/ Units after the Contract is awarded.

C. Authenticity of documents:

- i. That they have carefully read the contents of the tender
- ii. They have not made any misleading or false representation anywhere in the tender submitted including annexures thereto
- iii. That they understand that their offer will be evaluated based on the documents / credentials submitted along with the offer and the same shall be binding upon them
- iv. That the information and documents submitted by them along with the tender documents are complete and correct and they are fully responsible for authenticity and correctness of information and documents submitted
- v. That at any time during the process for evaluations of tenders, if any information / document submitted by them is found to be suppressing facts / forged / false / fabricated / fudged or incorrect, it shall lead to forfeiture of the EMD, if submitted, besides banning under the extant Guidelines for Banning of Business Dealings of SAIL and initiating any legal action as deemed fit by SAIL. Further, that their offer shall be summarily rejected.
- vi. That at any time after award of the contract, if the certificates submitted by them are found to be suppressing facts / false/ forged/ fabricated / fudged or incorrect, it may lead to termination of the contract, along with forfeiture of EMD/ SD and Performance Guarantee, if submitted, besides any other action provided in the contract including banning under the extant Guidelines for Banning of Business Dealings of SAIL and initiating any legal action as deemed fit by SAIL

- D. Anti-Bribery:** That they shall not give or take, any financial or non-financial bribe, to or from anyone during the tender or during the execution of the contract thereafter and if they notice any such incident happening, they shall report it to SAIL Vigilance.

- 24.1** In case of non-compliance of para 24.0 above , SAIL may at its discretion, invalidate their bid, exclude them from future tenders, pursue damages or other forms of redress from them (including but not limited to damages for delay, costs and expenses of re-tendering and other costs incurred), and /or (in the event that they are awarded the Contract) terminate the Contract.

- 24.2.** The Tenderer shall be required to declare whether the proprietor or any partner of the firm or Director of their company as the case may be has any relation with any

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employee working with the Purchaser and if so, give the name of the employee and the relationship and also whether any of them has a relationship within the meaning of Section 6 of the Companies Act, 2013 with any of the Directors of Steel Authority of India Limited

25.0 Language: Offer submitted by the Tenderer and all correspondence and documents relating to the offer exchanged between the Tenderer and the Purchaser shall be written in the English Language. Any printed literature furnished by the Tenderer may be written in another language so long as it is accompanied by a duly signed English translation in which case, for the purposes of interpretation of the offer, the English translation shall govern.

26.0 Termination:

- a) The Company (Purchaser / Executing Authority) shall have the option to cancel / terminate the PO / Contract at any time due to non-performance / any other activity detrimental to the interests of SAIL and its brand image or in the event of the Supplier's failure to discharge the duties stipulated in the Purchase Order / Contract to the satisfaction of Company (as certified by Purchaser/ Executing Authority); by giving 30 days' notice (cure period) in writing and without payment of any compensation. The Supplier shall have to settle the account within the notice period and no material of SAIL shall lie with the Supplier at the conclusion/ Termination of the Contract.
- b) Purchaser will be entitled to terminate the Agreement by giving prior notice of at least 2 months to the other party if the other party goes into voluntary liquidation or is ordered to be wound up or is declared bankrupt, insolvent etc., by a court of law and is unable to pay its debts as they become due, and in the event of such termination, all sums due under the Agreement to either party on the date of the notice shall be immediately payable upon demand.
- c) Termination of the Agreement shall not affect obligations of either Party that may have accrued prior to the effective date of termination.
- d) Termination of the Agreement shall be in addition to, and shall not be exclusive of or prejudicial to, any other grounds for termination or rights or remedies at law or in equity which either Party may have on account of any default of the other Party.
- e) If the Agreement does not meet the objective set out herein and the parties mutually agree, the Agreement can be terminated.
- f) Upon receipt of the notice of termination, the Supplier shall either immediately or upon the date specified in the notice of termination, cease all further work except for such as the Purchaser may specify in the notice of termination. In the event of

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termination of the Contract the Purchaser shall only pay to the Supplier, the Price for the parts executed by the Supplier as on the date of termination.

27.0 Banning of Business Dealings: On arising of any situation or occurrence of any event as mentioned in the SAIL Guidelines on Banning of Business Dealings the Tenderer/Bidder or Supplier under the tendering process or Contract with SAIL, as the case may be, shall be liable for action under and in accordance with the aforementioned Guidelines. The “Guidelines on Banning of Business Dealings” as applicable on the date of tender opening shall form part of the Tender/Contract. These guidelines are available on SAIL tender website.

28.0 Waiver: Failure to operate or to enforce any condition under this GCC / Contract shall not operate as a waiver of the condition itself or any subsequent breach thereof.

29.0 Governing Law: The Contract entered into between the Company and the Supplier shall be governed by and interpreted in accordance with the Laws of India. The place of **exclusive** jurisdiction shall be the place where the Purchaser is located unless otherwise specified.

30.0 Additional Terms & Conditions – Specific to Import

30.1 Tenderers should quote as per INCOTERMS latest version as may be revised from time to time, clearly indicating applicable commercial terms and conditions basis which price has been quoted. Evaluation shall be done on Landed Cost Net of Set Off (Door delivery basis). However, Purchaser reserves the right to place order on Ex-W,FOB, FCA or CFR, CIF, CPT basis.

30.2 Guidelines for Indian Agents of Foreign Suppliers:

- i) There shall be compulsory registration of agents for all Global (Open) Tender and Limited Tender. An agent who is not registered with SAIL Plants/Units shall apply for registration.
- ii) Registered agents will file an authenticated Photostat copy duly attested by a Notary Public/Original certificate of the principal confirming the agency agreement and giving the status being enjoyed by the agent and the commission/remuneration/salary/ retainer ship being paid by the principal to the agent before the placement of order by SAIL Plants/Units.
- iii) Wherever the Indian representatives have communicated on behalf of their principals and the foreign parties have stated that they are not paying any commission to the Indian agents, and the Indian representative is working on the basis of salary or as retainer, a written declaration to this effect should be submitted by the party (i.e. Principal) before finalizing the order.
- iv) One agent cannot represent more than one Supplier / Principal/ OEM or quote on their behalf in a particular tender. In case one agent represents two suppliers or quotes on their behalf in the tender, all them are liable to get rejected.

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30.3 Disclosure of Particulars of Agents/ Representatives in India. If Any.

- I) **Tenderers of Foreign nationality shall furnish the following details in their offer:**
 - a) The name and address of the agents/representatives in India, if any and the extent of authorization and authority given to commit the Principals. In case the agent/representative be a foreign Company, it shall be confirmed whether it is real substantial Company and details of the same shall be furnished.
 - b) The amount of commission/remuneration included in the quoted price(s) for such agents/representatives in India.
 - c) Confirmation of the Tenderer that the commission/ remuneration if any, payable to his agents/representatives in India, may be paid by SAIL in Indian Rupees only.
- II) **Tenderers of Indian Nationality shall furnish the following details in their offers:**
 - a) The name and address of the foreign principals indicating their nationality as well as their status, i.e, whether manufacturer or agents of manufacturer holding the Letter of Authority of the Principal specifically authorizing the agent to make an offer in India in response to tender either directly or through the agents/representatives.
 - b) The amount of commission/remuneration included in the price (s) quoted by the Tenderer for himself.
 - c) Confirmation of the foreign principals of the Tenderer that the commission/remuneration, if any, reserved for the Tenderer in the quoted price (s), may be paid by SAIL in India in equivalent Indian Rupees on satisfactory completion of the Project or supplies of Stores and Spares in case of operation items .
- III) In either case, in the event of contract materializing, the terms of payment will provide for payment of the commission /remuneration, if any payable to the agents/representatives in India in Indian Rupees on expiry of 90 days after the discharge of the obligations under the contract.
- IV) Failure to furnish correct and detailed information as called for in paragraph 2.0 above will render the concerned tender liable to rejection or in the event of a contract materializing, the same liable to termination by SAIL. Besides this there would be a penalty of banning business dealings with SAIL or damage or payment of a named sum.

30.4 Inspection at Purchaser's premises: After inspection at destination, if it is found that the stores do not conform to the ordered specifications, discrepancy in this regard will be intimated to Supplier within 60 days from date of receipt of the material at stores. On receipt of such discrepancy letter Supplier will have the option to inspect the material jointly at destination, if they so desire. In case the Supplier does not exercise this option

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within 4 weeks from the date of receipt of intimation, the discrepancy will be treated as final conclusion & materials will be replaced by correct supply on DDP Purchaser's Store basis (even in FOB contracts) and all charges, duties, freight, insurance etc., up to Purchaser's Stores, will be borne by Supplier.

30.5 Shipping arrangement: Necessary intimation by Supplier shall be given to the Purchaser / his authorized agent, as stated in the Contract, after shipment. In case of Air freighting by Purchaser, the air consolidating agents name will be specified in the order.

30.6 Negotiable Shipping Documents: Following documents are to be submitted by Supplier:

- Clean Bill of Lading/ Airway bill /Telex Bill of Lading
- Invoice
- Packing List
- Certificate of country of origin
- Certificate of Conformance
- Third party Test certificate / Works Test Certificate (as applicable)
- Guarantee/ warranty certificate.
- Phyto-Sanitary certificate (wherever applicable)
- Any inter govt. agreement wherever applicable for availing concession on import duties.
- Other specific documents as per Special Terms & Conditions of Contract etc.

30.7 Test and Fitment Certificate: The Supplier must furnish test certificate for the material shipped showing the details of test results. Fitment certificate is required in case of proprietary spares / components.

30.8 Country of origin: This must be indicated in Tenderer's offer along with manufacturer's name and address.

30.9 Packing: Supplier shall arrange Phyto-Sanitary Certificate from authorized Agency for packing materials made of wood/wood products, wherever applicable. Hazardous chemicals should be packed as per MSDS guidelines.

30.10 Preferred mode of payment is Cash against Documents (CAD). However, if payment through Letter of credit (L/C) is agreed to, then following shall be applicable

- a) **All charges including Letter of Credit confirmation charges outside India,** shall be borne by Supplier and those in India will be borne by Purchaser. In case Letter of Credit is extended for reasons attributable to Supplier, the extension charges will be borne by the Supplier.
- b) The Letter of Credit shall be valid for delivery period for shipment plus negotiation period, which will be 21 days.

30.11 Weightment: The weight mentioned in the third party inspection certificate or the Bill of Lading, whichever is less, shall be final for all the payment purposes.

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30.12 Legal interpretation:

- a) The Contract shall be governed by & construed according to the Laws of India for the time being in force.
- b) To interpret all commercial terms & abbreviations used herein, which have not been otherwise defined, latest INCOTERMS , may be referred.
- c) Only the competent courts of India will have jurisdiction over any dispute arising out of and in relation to this Contract.

31.0 Purchase Preference: (Both for Indigenous and Import Tenders)

- a) Any purchase preference to Make in India Suppliers and MSE Suppliers, shall be based on the extant guidelines of Govt. of India and guidelines of SAIL Plants / Units.
- i) **Micro and Small Enterprises (MSEs):** In line with the Public Procurement Policy (PPP) for Micro & Small Enterprises (MSEs) Order 2012, issued vide Gazette Notification dated 23.03.2012 and amendments thereof the tenderer who is registered as Micro/small Enterprises must submit valid self certified copy of Udyam Registration Certificate (URC) issued after registering on the Udyam Registration Portal i.e,<https://udyamregistration.gov.in>

In case Udyam Registration Certificate (URC) is not provided, they shall not be eligible to the benefits admissible under the Act.

- ii) **Public Procurement (Preference to Make in India), Order 2017:** Procurement against this tender will be governed by the provisions enumerated in Govt. of India order no. P-45021/2/2017-PP(BE-II) dt. 15.06.2017 duly amended dt 28.05.2018, 29.05.2019, 04.06.2020 and 16.09.2020. Any subsequent modification / guidelines issued further from time to time shall also be applicable.

The Bidders shall provide self-certificate / certificate from the statutory auditor or cost auditor of the Company (in the case of companies) / from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies), as applicable, indicating whether they are class-I local supplier / class-II local supplier as per Annexure A (i) or A (ii) to be submitted along with Techno-Commercial

32.0 Restriction on procurement from a bidder of a country which shares a land border with India:

- A. Any Bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of goods ,services (including consultancy services and non consultancy services) or works (including turnkey projects) only if the bidder is registered with the competent authority. Further, any bidder (including bidder from

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India) having specified transfer of technology (ToT) arrangement with any entity from a country which shares a land border with India , shall also require to be registered with the same competent authority. as per DoE Order dated 23.07.2020 and subsequent amendments thereto from time to time.

- B. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of Bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.
- C. "Bidder(or entity) from a country which shares a land border with India" for the purpose of this Order means: -
- a. An entity incorporated, established or registered in such a country; or
 - b. A subsidiary of an entity incorporated, established or registered in such a country; or
 - c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - d. An entity whose beneficial owner is situated in such a country; or
 - e. An Indian (or other) agent of such an entity; or
 - f. A natural person who is a citizen of such a country; or
 - g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above
- D. The beneficial owner for the purpose of (C) above will be as under:
1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

Explanation

- a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent, of shares or capital or profits of the company;
 - b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;
2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
 3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more

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juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;
5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
- E. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.
- F. Only for Works Contracts including Turnkey Contract): The successful bidder shall not be allowed to sub contract works to any contractor from a country which shares a land border with India, unless such contractor is registered with the competent authority
- G. The registration should be valid at the time of submission of bid and at the time of acceptance of bid.
- H. If the bidder was validly registered at the time of acceptance/ placement of order, registration shall not be a relevant consideration during contract execution
- I. Certificate of Conformance : By submitting their offer the bidder is deemed to have:

"Read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; To have certified that they are not from such a country or, if from such a country, have been registered with the Competent Authority.: to certify that they fulfill all requirements in this regard and are eligible to be considered."
If subcontracting is applicable, the Bidder by submitting their offer is deemed to have

“ Read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; certified that they are not from such a country or if from such a country, have been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority; certified that they fulfill all requirements in this regard and are eligible to be considered."
- J. In case bidder is registered for this purpose, evidence of valid registration by the competent authority should be attached and should be valid at the time of bid submission and at the time of price discovery.

33.0 Immunity to Government of India :It is expressly understood and agreed to by and between the Purchaser and Supplier that the Purchaser is entering into the Contract solely

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on its own behalf and on behalf of its wholly owned subsidiaries and not on behalf of any other person or entity. In particular, it is expressly understood and agreed that the Government of India is not a party to the Contract and has no liabilities, obligations or rights hereunder. It is expressly understood and agreed that Purchaser (SAIL) is an independent legal entity with power and authority to enter into contracts solely in its own behalf under the applicable laws of India and general principles of contract law. The Supplier expressly agrees, acknowledges and understands that Purchaser is not an agent, representative or delegate of the Government of India. It is further understood and agreed that the Government of India is not and shall not be liable for any acts, omissions and commissions, breaches or other wrong arising out of the Contract. Accordingly, the Supplier hereby expressly waives, release and forgoes any and all actions or claims including cross claims, impleader or counter claims against the Government of India arising out of the Contract and covenants not to sue the Government of India in any manner, claim cause of action or take any action whatsoever arising out of or under the Contract.

34.0 Intellectual Property Rights Indemnity:

- i) The Supplier shall indemnify and hold harmless the Purchaser and its employees from and against all losses, liabilities, and costs (including losses, liabilities, and costs incurred in defending a claim alleging such a liability), that the Purchaser or its employees may suffer as a result of any infringement or alleged infringement of any Intellectual Property Rights by reason of copying of the Software, Technology in respect of products supplied by the Supplier under the said contract.
- ii) If any proceedings are brought or any claim is made against the Purchaser arising out of the matters related to Infringement or alleged Infringement of Intellectual Property Rights, the Purchaser shall promptly give the Supplier notice of such proceedings or claims. The Supplier shall have sole control and responsibility on the conduct of such proceedings or claims and any negotiations for the settlement of any such proceedings or claims. The Purchaser shall provide the Supplier only with the assistance, information, and authority reasonably necessary to perform the above.

35.0 Confidentiality: All documents, drawings, samples, data, associated correspondence or other information furnished by or on behalf of the Purchaser to the contractor, in connection with the contract, whether such information has been furnished before, during or following completion or termination of the contract, except what is in public domain are confidential and shall remain the property of the Purchaser and shall not, without the prior written consent of Purchaser neither be divulged by the contractor to any third party, nor be used by him for any purpose other than the design, procurement, or other services and work required for the performance of this Contract. If advised by the Purchaser, all copies of all such information in original shall be returned on completion of the contractor's performance and obligations under this contract.

36.0 Backing out by bidder / withdrawal of offer: If the bidder withdraws or modifies their bid during the period of validity or if they are awarded the contract and fail to submit

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performance security as per the deadline defined in request for bid documents, they will be suspended from being eligible to participate in future tenders as per the prevalent guidelines of SAIL.

37.0 Code of Integrity

A) By participation in this tender, Bidders, Suppliers, Contractors, and Consultants are deemed to have declared that they shall observe the highest standard of ethics and shall not indulge in the following prohibited practices, either directly or indirectly, at any stage during the Tender Process or during the execution of resultant contracts:

- 1) “Corrupt practice” - making offer, solicitation or acceptance of a bribe, reward or gift or any material benefit, in exchange for an unfair advantage in the Tender Process or to otherwise influence the Tender Process;
- 2) “Fraudulent practice” - any omission or misrepresentation that may mislead or attempt to mislead so that financial or other benefits may be obtained or an obligation avoided. Such practices include a false declaration or false information for participation in a tender process or to secure a contract or in the execution of the contract;
- 3) “Anti-competitive practice” - any collusion, bid-rigging or anti-competitive arrangement, or any other practice coming under the purview of the Competition Act, 2002, between two or more bidders, with or without the knowledge of the Purchaser, that may impair the transparency, fairness, and the progress of the Tender Process or to establish bid prices at artificial, non-competitive levels;
- 4) “Coercive practice” - harming or threatening to harm persons or their property to influence their participation in the Tender Process or affect the execution of a contract;
- 5) “Conflict of interest” –participation by a bidding firm or any of its affiliates who are either involved in the Consultancy Contract to which this procurement is linked; or if they are part of more than one bid in the procurement; or if their personnel have a relationship or financial or business transactions with any official of Purchaser who are directly or indirectly related to tender or execution process of contract; or improper use of information obtained by the (prospective) bidder from the Purchaser with an intent to gain unfair advantage in the Tender Process or for personal gain;
- 6) “Obstructive practice” - materially impede Purchasers investigation into allegations of one or more of the above mentioned prohibited practices either by deliberately destroying, falsifying, altering; or by concealing of evidence material to the investigation; or by making false statements to investigators and/ or by coercive

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practices mentioned above, to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or by impeding the Purchaser's rights of audit or access to information;

B) Obligation of Proactive Disclosure

- 1) Bidders, suppliers, contractors, and consultants are obliged under this Code of Integrity to suo-moto proactively declare any conflict of interest (coming under the definition mentioned above - pre-existing or as and as soon as these arise at any stage) in any Tender Process or execution of the contract. Failure to do so shall amount to a violation of this code of integrity.
- 2) Bidder must declare, whether asked or not in a bid-document, any previous transgressions of such code of integrity with any Procuring entity during the last three years or of being debarred by the any other Organisation Failure to do so shall amount to a violation of this code of integrity.
- 3) Such declarations would not mean automatic dis-qualification for the bidder making such declarations. The declared conflict of interest shall be evaluated for taking mitigation steps, where possible. Similarly voluntary reporting of previous transgressions of code of integrity elsewhere shall be evaluated barring cases of various grades of debarment; an alert may be kept on the bidders actions in the tender and subsequent contract.

C) Punitive Provisions:

Without prejudice to and in addition to the rights of the Company to other penal provisions as per the bid documents or contract, if the Company comes to a conclusion that a Bidder/Supplier, directly or through an agent, has violated this code of integrity in competing for the Contract or in executing a contract, the Company may take appropriate measures including one or more of the following:

- i) If his bids are under consideration in any procurement:
 - a) Forfeiture or encashment of bid security
 - b) Calling off of any pre-contract negotiations, and;
 - c) Rejection and exclusion of the bidder from the procurement process
- ii) If a contract has already been awarded:
 - a) Cancellation of the relevant contract and recovery of compensation for loss incurred by the Company;
 - b) Forfeiture or encashment of any other security or bond relating to the procurement;
 - c) Recovery of payments including advance payments, if any, made by the Company along with interest thereon at the prevailing rate;
- iii) Provisions in addition to above:

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- a) Removal from the list of registered suppliers and banning/debarment of the bidder from participation in future procurements of the Company
- b) In case of anti-competitive practices, information for further processing may be filed with the Competition Commission of India;
- c) Initiation of suitable disciplinary or criminal proceedings against any individual or staff found responsible.

38.0 Business responsibility and sustainability

At SAIL, we deeply value the vital role that companies can play in safeguarding and promoting human rights in the long term. We recognize our responsibility to uphold the spirit of human rights, as outlined in existing international standards, such as the Universal Declaration and the Fundamental Human Rights Conventions of the International Labour Organization. SAIL expects its suppliers to develop and implement policies and procedures to ensure all human rights in their business and to encourage their suppliers to do likewise. Our Human Rights Charter is available at <https://sail.co.in/sites/default/files/2023-09/Human-Rights-Charter.pdf>.

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Annexure- A(i)

Format for Declaration to be given by a Make In India Supplier

To be submitted on the Letter head of the Bidder

Self-Certification (for Procurement values equal to/less than Rs 10 crs)

Certificate for M/s. Steel Authority of India Ltd.,
With reference to SAIL-.....RFQ No.dt..... and our offer no.
.....

In line with the revised Public Procurement (Preference to Make In India), Order 2017 dated 16-09-2020, as amended from time to time and as applicable on the date of submission of tender, we hereby certify that we M/s _____ (Bidder name) are local suppliers and item wise local content as defined in above orders for the material to be supplied by us against abovementioned Tender No _____ is furnished as below:

Item No.	Item Description	Local Content (%)
1.		
2.		
3.		
4.		
5.		

Details of location at which local value addition will be made is as follows:

We also understand, false declaration will be in breach of the Code of Integrity under Rule 175(1)(i)(h) of the General Financial Rule for which a bidder or its successors can be debarred for up to two years as per Rule 151 (iii) of the General Financial Rules along with such other actions as may be permissible under law.

Note: entries to be made separately for all items as per tender)

Seal and Signature of Authorized Signatory

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Annexure- A(ii)

Format for Declaration to be given by a Make In India Supplier
To be submitted on the letterhead of the Statutory/ cost Auditor/ cost Chartered
Accountant as applicable.

Certificate from Statutory Auditor / Cost Auditor of the Company (In case of companies) or
from a practicing Cost Accountant / Chartered Accountant (in respect of suppliers other than
companies) for Procurement value more than Rs 10 crs

Certificate for M/s. Steel Authority of India Ltd.,
With reference to SAIL-.....RFQ No. and M/s.
..... offer no.

I/ We , having a registered officehave verified the records & documents produced
before me/ us by the management of M/s. having regd.
Office & having their manufacturing facility at
....., I/We hereby certify that the company has produced
..... during (6 months period – half of Financial year) with
domestic / local value addition of and we hereby certify that in the event of
placement of order, M/s.....shall supply material
description with local content of%.

Local content has been calculated as below:

Item No.	Item Description	Local Content (%)
1.		
2.		
3.		
4.		

Details of location at which local value addition will be made is as follows:

“Local content is the total value of the item procured (excluding net domestic indirect taxes and duties) minus the landed cost of imported input materials at the manufacturing plant in India (including all customs duties) as a proportion of the net selling price, in per cent.”

This certificated is being issued for classifying M.s as a Class -1 or Class –II Local supplier, as per revised Public Procurement (Preference to Make In India), Order2017 dated 16-09-2020of Ministry of Commerce and Industry, Department for Promotion of Industry and Internal Trade (Public Procurement Section), Government of India.

Statutory / Cost Auditor of M/s _____ (For companies)

Or

Cost Accountant / Chartered Accountant (in respect of suppliers other than companies)

Sign & Stamp